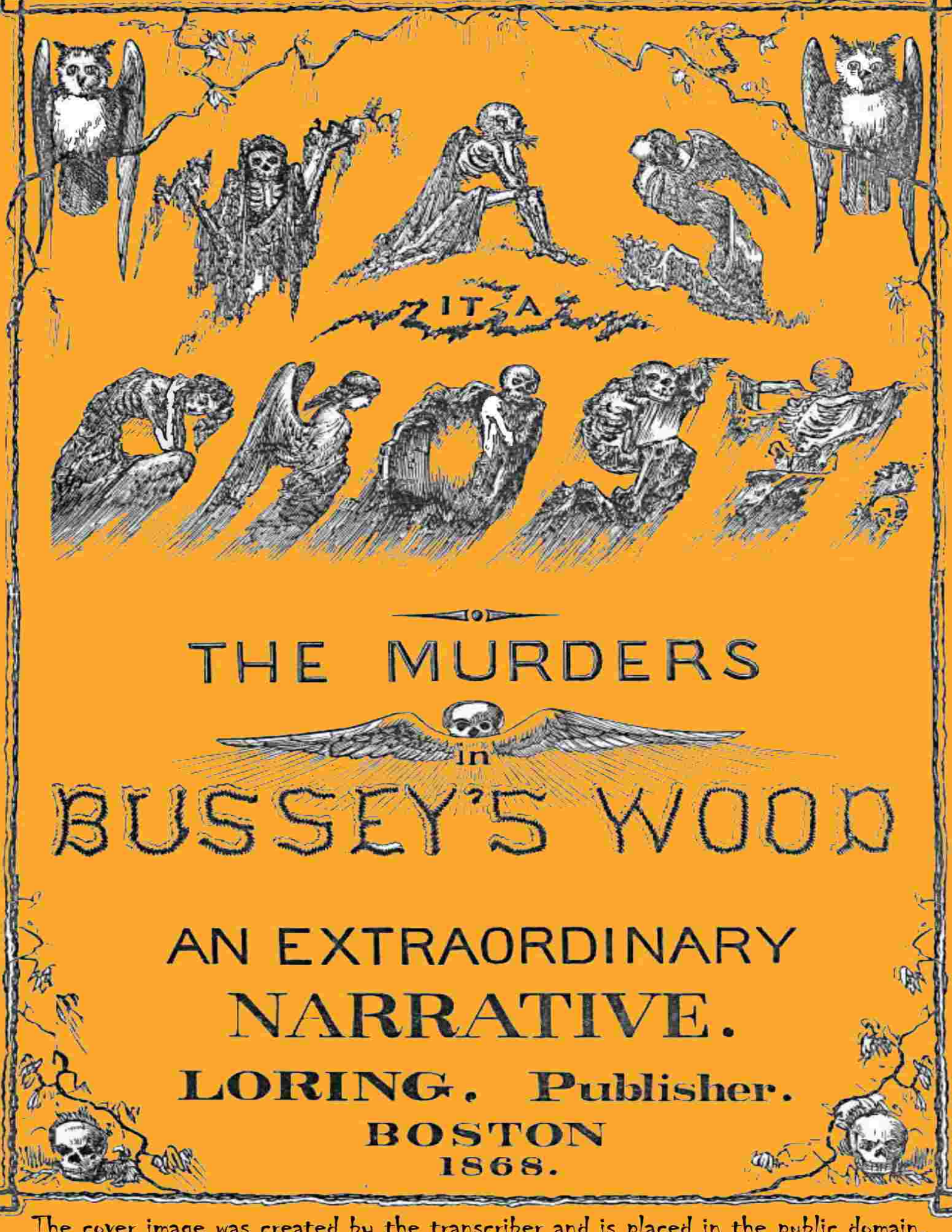




IT A

THE MURDERS

in

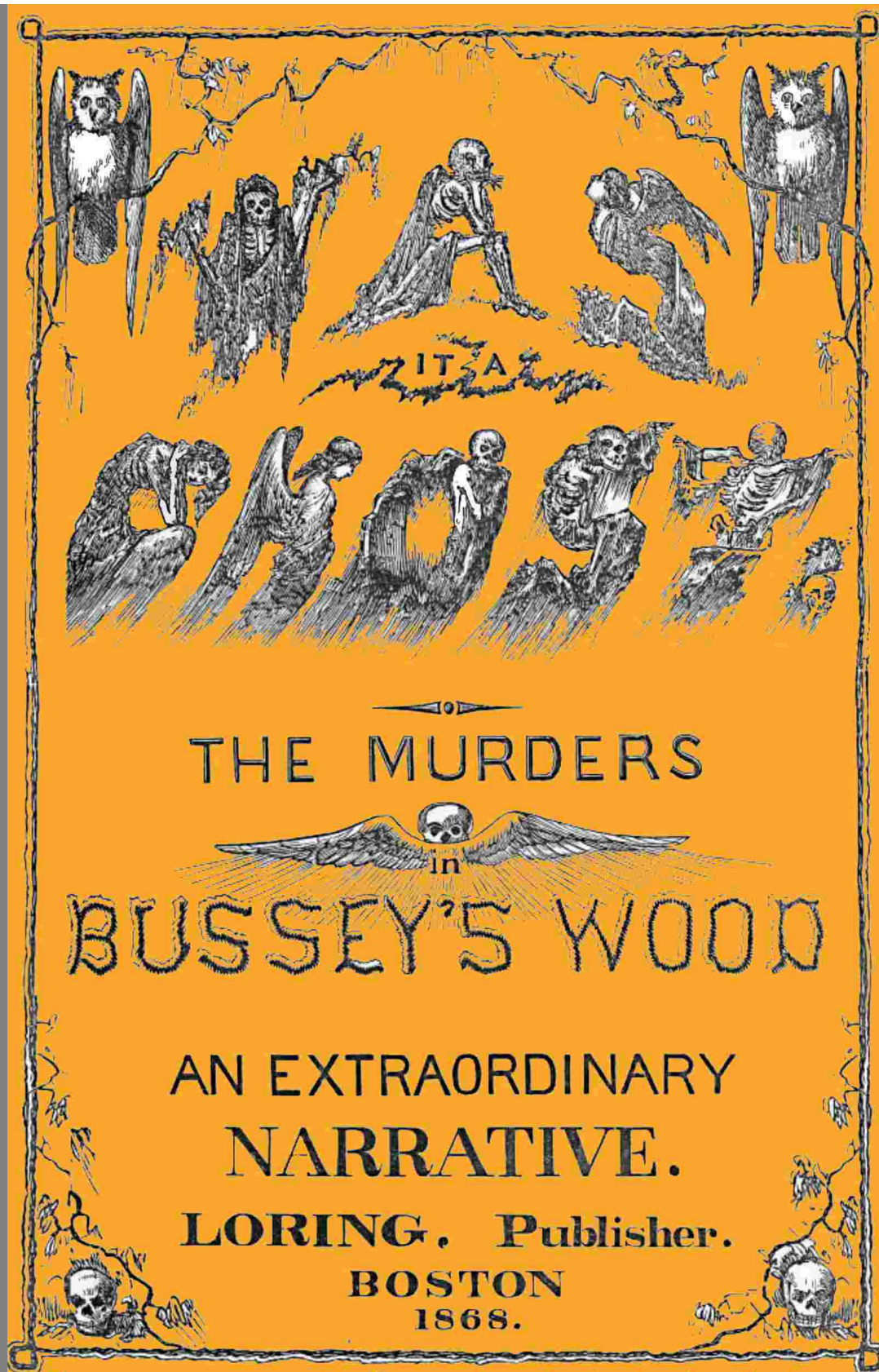
BUSSEY'S WOOD

AN EXTRAORDINARY
NARRATIVE.

LORING. Publisher.

BOSTON

1868.



The cover image was created by the transcriber and is placed in the public domain.

The Project Gutenberg eBook of Was it a ghost? The murders in Bussey's wood

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Was it a ghost? The murders in Bussey's wood
An extraordinary narrative

Author: Henry Johnson Brent

Release date: February 4, 2023 [eBook #69955]
Most recently updated: October 19, 2024

Language: English

Original publication: United States: Loring, Publisher, 1868

Other information and formats: www.gutenberg.org/ebooks/69955

Credits: Charlene Taylor and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK WAS IT A
GHOST? THE MURDERS IN BUSSEY'S WOOD ***

**WAS
IT A
GHOST?**

THE MURDERS
in
BUSSEY'S WOOD

AN EXTRAORDINARY
NARRATIVE.

LORING, Publisher.

BOSTON
1868.

PRICE, 75 CENTS.

Loring's Publications.

CHOICE FICTION.

THE GAYWORTHYS. By the Author of 'Faith Gartney's Girlhood.'	8th Edition.	\$2.00
INTO THE LIGHT: or, THE JEWESS.		1.75
PIQUE: A Tale of the English Aristocracy.	15th Ed.	1.50
SIMPLICITY AND FASCINATION: A Tale of the English Gentry.	3d Ed.	1.50
MAINSTONE'S HOUSEKEEPER: A Tale of the Manufacturing Districts.	9th Ed.	1.50
THE QUEEN OF THE COUNTY.	4th Ed.	1.50
BROKEN TO HARNESS. By EDMUND YATES.	4th Ed.	1.50
RUNNING THE GAUNTLET. " "	3d Ed.	1.50
MIRAMICHI: A Story of the Methodist Blacksmith.		1.25
MOODS. By LOUISA M. ALCOTT.	3d Ed.	1.25
A LOST LOVE. By ASHFORD OWEN.	4th Ed.	1.25

For Young Ladies.

FAITH GARTNEY'S GIRLHOOD.	16th Ed.	1.75
JUDGE NOT: or, HESTER POWERS' GIRLHOOD.	2d Ed.	1.50
MARGARET AND HER BRIDESMAIDS.	4th Ed.	1.50
MILLY: or, THE HIDDEN CROSS, A Romance of School Life.	3d Ed.	1.50
HELEN FORD. A Romance of New York City Life. By HORATIO ALGER, jr.,		1.50
COUNTESS KATE. By MISS YONGE.	3d Ed.	1.25

For Young Gentlemen.

MARK ROWLAND. A Romance of the Sea. By HAUSER MARTINGALE.		1.50
THE BOYS AT CHEQUASSET. By the Author of 'Faith Gartney's Girlhood.'		1.25
FRANK'S CAMPAIGN. By HORATIO ALGER, jr.		1.25
PAUL PRESCOTT'S CHARGE. " "		1.25

CHARLIE CODMAN'S CRUISE. " "	1.25
RAGGED DICK: A Story of New York Boot Blacks and News Boys. (In Press.)	
TIMOTHY CRUMP'S WARD—and What Came of It.	1.00
THE LITTLE GENTLEMAN IN GREEN: A Fairy Story for Boys and Girls.	75

Mrs. Warren's Popular Home Manuals.

HOW I MANAGED MY HOUSE ON £200 A YEAR.	50
COMFORT FOR SMALL INCOMES.	50
HOW I MANAGED MY CHILDREN from Infancy to Marriage.	50
HOW TO FURNISH A HOUSE WITH SMALL MEANS.	50



THE GHOST.

WAS IT A GHOST?

THE MURDERS IN BUSSEY'S WOOD.

An Extraordinary Narrative.



LORING, Publisher,

319 WASHINGTON STREET,
BOSTON.

Entered, according to Act of Congress, in the year 1868, by
A. K. LORING,
In the Clerk's Office of the District Court for the District of Massachusetts.

ROCKWELL & ROLLINS, STEREOTYPERS AND PRINTERS,
122 Washington Street, Boston.

DEDICATION.



I dedicate this book to that philosophy which can argue without anger, can have a disbelief without sustaining it by insolence; which can pause on the brink of a chasm, and, because there happens to be no bridge by which it can cross over, will not proclaim to all the world that no bridge can be built; to the philosophy which sees as much beauty in a doubt as in a solution, and has not ventured, or mayhap will never venture, to affix a limit to human thought, or define the prerogatives of our Lord and Creator. I do not dedicate it to the Free Thinker, but to the Just Thinker. The highest reverence exists oftener than otherwise in the humblest soul, and the night of our ignorance is lit by stars to accustom us to the effulgence of the dawn. The future is the poetry of our hope; the present our rest, from which we extend the wings of memory for the longer and more glorious flight toward the end. My work will be found to look faintly but fondly to those things, if it is read aright; and so in all and everything I humbly say that I have no higher ambition than to serve my Master.

PREFACE.



I take advantage of this antique form of literature to make a statement.

The murders of which I shall have to speak in the following pages have been misunderstood. There was only one species of crime in their perpetration, and this I have from the highest authority. If I had thought it advisable, I could have pointed out the progress by which the assassin reached his determination, his peculiarity of character, and his motives; but such a course would have detected justice to the culprit, not the culprit to justice. Whenever he shall be discovered, the evidence will be ample justification for my assertion with regard to the character of the crime, and reveal the darkest, wickedest, and most deliberate murders with which the history of humanity has been cursed.

I am indebted to my friend, THOMAS HILL, Esq., the eminent landscape painter, for the singularly appropriate adaptation of weird figures to letters on the cover of my book, and also for the very felicitous representation of the "Ghost." His magic pencil masters the alphabet as well as the higher regions of art, and I feel assured that my readers will be pleased that I had, in my need, so able an assistant in helping me to make my humble effort acceptable.

J. B.

CONTENTS.



	PAGE
Preliminary Remarks	<u>9</u>
I. The Roads	<u>11</u>
II. The Incidents	<u>18</u>
III. The Scene	<u>22</u>
IV. The Brook	<u>25</u>
V. The Dogs	<u>30</u>
VI. The Flat Bridge	<u>34</u>
VII. Suspected	<u>41</u>
VIII. The Murder-Rock	<u>45</u>
IX. Suspicion	<u>49</u>
X. Was it a Ghost?	<u>57</u>
XI. The Tests	<u>67</u>
XII. Tests	<u>75</u>
XIII. The Doctor's Story	<u>94</u>
XIV. My Plan of Punishment	<u>101</u>
XV. The Children	<u>110</u>
XVI. Ghosts	<u>113</u>
XVII. Manifestations	<u>123</u>

PRELIMINARY REMARKS.



The main circumstances that form, in part, the topic of my recital, excited, at the time of their occurrence, a feeling of unprecedented horror. They came upon the public sensibility with a force that even the previous recital of the bloody events of the civil war could not lessen. Habituation to horror had not deadened the public susceptibility; for there was around the incidents a belt of mystery and affright that defied the approach of justice, and baffled private speculation.

No necessity, even in the tortuous excuses of crime, was apparent for the deed; for the victims had had no opportunities to establish, individually of themselves, hostile relations with any one, and their condition placed them beyond or beneath the chance of social importance. They were claimants to no estate in litigation, stood in no man's way to advancement, could have produced no rivalry, had inspired neither revenge, nor jealousy, nor love. They had, in fine, none of those means that men and women have to incite to crime; for they were children, and yet they were subjected to a fate that few, if any, children, had confronted before.

The commission of the deed was a barbarity; its motives, apparently, a paradox.

Everything, indeed, about the transaction was unusual. The hour, the circumstances, and the locality, all contributed to inspire a greater horror of the act; and yet, up to this moment, no man's name, of high or low, bears a blemish of continued suspicion. Justice seems to rest, after the excitement of the instant search,—a search that, I have every reason to know, was intricate and thorough; but, at the same time, it is well to know that the intelligent Chief of the police department has only seemed to pause. His eyes have never been entirely withdrawn from the contemplation of the subject; and I feel assured, from what I know, that his vigilant and nervous grasp will, at the appointed time, be placed upon the shoulder of the atrocious criminal. The murderer may have perhaps, ere this, caught glimpses, from his abode of gloom in another world, of those two spirits

whose bodies he hacked so butcherly. If that be so, the Chief will have naught to do; but if he be alive, wandering a desolate path through a desolate world, it may be that justice will not have waited with an energetic patience in vain.

THE NARRATIVE.



I.

THE ROADS.

There are two roads direct by which the scene I am about to describe can be reached from Boston. One is the steam-car road, passing through Roxbury, and dropping way-passengers at Laurel Hill Station. The other is the horse-car line, that, for some portion of the route, runs parallel to the steam. The third, and more picturesque, is another horse-car line, which passes through Jamaica Plain, and drops the passengers some several hundred yards west, and farther removed from the official terminus of the two other routes. It was by the second of these routes, that, on the 12th day of June, 1865, two children, Isabella and John Joyce, started from their home in Boston, where they were temporarily boarding, to spend a few hours in May's wood, intending to return, according to the elder one's promise, in time for her brother to attend his afternoon school. Thus it is established that the sister never intended to go farther than the wood first proposed; and in this we have the first glimmering of the series of mysterious circumstances in which the wretched affair is enveloped from the beginning to the end.

This girl was not sixteen years old.

The boy was barely eight.

Whatever happened after they took their seats in the car, and who accompanied them, or joined them afterward, is a matter simply of conjecture; and yet, as they sat there, these two young things, who, of all the rest of the passengers that looked upon their fresh, pleasure-anticipating faces, could have dreamed that, in a section so civilized, a community so guarded, a population so abundant, in the marginal outlines of a great city, that ere the sun went down, within a few short hours, indeed, that girl and boy would be lying stiff and stark, pierced,—the one, the girl, by twenty-eight poniard stabs, and the boy by enough to have killed the captains of a

full regiment; the girl dead in the hollow of a rock within thirty feet of a public road, the boy less than a quarter of a mile away, in the dense shrubbery, by a tiny stream that flows through the shades of Bussey's wonderfully beautiful woods!

Now, this wood of Bussey's—at present in the possession of Mr. Motley, one of the heirs by marriage—is a subject of frequent thought to the writer of this narrative. It was so before it became the witness to the murder of these two children; after that, while of course losing in sentiment and by association some of its innate and sympathetic loveliness, it ever wore the weird aspect of a mystic realm; but now is added that terrible consciousness of a fright, a terror, pervading all its recesses. The wood lies about six or seven miles southward of the Boston State House, on a county road, and its summits are lofty enough to afford a view of the city and the rattlesnake infested Blue Hills back of the Mattapan, more southwardly yet.

The wood, as you approach down the road from Mr. Motley's gate, presents the aspect of a hill of pines, dark and massive; but, crossing the fence that keeps it from the highway, you are almost at once in the midst of a mingled growth of birch and beech and willows; beneath these passes the brook, near to whose bank was found, farther up, the body of the boy. Old Mr. Bussey, it would seem, was a man of droll, yet picturesque fancies, mingled with a sturdy sense of the useful; for no sooner are you free of the pasture land, and in among the trees, than you discover traces of his handiwork. The path you are upon is broad and well constructed, leading to a solid bridge of masonry; and well may you pause here to take in the full effect of the scenic entanglement. On your right is a fish-pond, fringed with the swamp willow, and of sufficient capacity to contain fish enough for a council of cardinals during the abstinent days of Lent; and near by a spring of water, so cold that ice is never needed by those frequent picnic parties that, up to the period of the murders, sought these delicious retiracies for holiday festivals, or love's deeper and sweeter plans of recreation. Crossing this lower bridge, and passing over a road with velvety grass borders, you turn to your left, and if you have the time from sandwiches and other condiments, or are not too absorbed in emotions that beat marches to the field of matrimony, or much elaboration of flirtation, you will see the steep ascent, bearded with huge pines, and covered with abutting rocks, looking like the base of a minor incident of Alpine precipice. If you choose, there is

a wild pathway made among the zigzags, and this you can pursue until the summit meets you, with the recompense of a noble prospect, but with your muscles somewhat demoralized. Did those children take this route?

Along the ridge, a broad walk leads to the spot where the wounded-to-death body of the unhappy girl was found. But, if you think otherwise, in your humor of unsettled choice, you can turn to your right, and, winding around the base of the hill, through dwarf pines at first, and heavy timber afterward, stroll on until you reach the scene of the primal tragedy. Did they go by this way? The wildness, the solemnity, and total seclusion of the place, even in the broad daylight, are oppressive to the imagination, if you happen to be alone. Company in a graveyard, at midnight, destroys in some measure the unpleasant sense of other than human propinquity; and it is the same in a modified form, in this umbrageous condensity. By all but hilarious picnic parties, the solitude and seriousness of a wood is admitted; and this wood is one of the most unique I have ever visited. But, since then, it is no simple congregation of trees and rocks and mysterious paths,—no longer a sylvan asylum of perfect repose, inviting to reverie, to pleasure, or the interviews of love, sweetened by the security that shadows of leaves throw upon the blushing hieroglyphic of the cheek, or the deeper and softer and better understood language of the eyes. A gloom is here established forever. It is a witness of that most terrible of tragedies to which our human condition is liable. The knife of the murderer has gleamed here,—the cry of the victim been uttered. It is haunted! Haunted by what? Who can tell? By ghosts, or the idea of ghosts? It makes no difference which. In such cases, where logic is shattered over a catastrophe, imagination lifts up the fallen form of contracted reason, and ministers to its inability. Man does not always demand facts; or, rather, in the solving of the many difficult problems that are suggested by special and eccentric occurrences, he does not demand an iron-clad testimony,—a testimony not in accordance with the fact under inquisition. The existence of a thing is to be proved by evidence that can apply to the nature of its existence. The intention of Byron's brain cannot be proved by the same process you would take to prove that the ocean over the Banks of Newfoundland is not so deep as in its centre. If we waited for facts in proof of what we cannot directly understand, we should starve mentally, or go mad. Air is invisible, but it exists. It is here; it is yonder. It is more keenly felt by animals whose skins are thin. The armadilla, possibly, doubts its existence, unless he has the gift

of seeing it; but the hairless dog of China is no sceptic on the subject of atmospheric changes and attacks. Man, exposed to the blast, feels it more sensibly than the elephant placed in the same current. The *opinion* of the armadilla, or of the elephant, has nothing to do with the fact of the air's existence. The former animal recognizes a tempest, not by what he feels, but what he sees; and if he sees wind, then I give up my illustration, but not my argument. He sees a vision of flying dust, broken branches, prostrate trees. Possibly he draws his deductions from the theory of the sliding faculty of sand,—which phenomenon he has, perhaps, suffered from; and he has seen trees overturned by sand-slides, and, as the tempest beats unfelt upon his adamantine scales, he thinks the sand-power is at work, and would debate all day with any thin-skinned animal who would assert that it was done by a tempest of air. "I never saw it, I never felt it," Signor Armadilla would perpetually growl forth; and, so far as he was concerned, the air would be sand, and his neighbor a credulous, half-crazy believer in a thing perfectly intangible. He never could attribute the results of a tempest to any force which is not within the range of his experience. He is where he was, but the oak is where it was not. He stood upon a sound place, the oak upon a slide,—that's all. There was no hurricane. Thus it is that while a thing may exist, it may not always be apparent, and if apparent, only to a few. Men take views according to the texture of their mental cuticle, mercurial or otherwise, thick or thin; and can decisions based upon such capricious contingencies be accepted as a philosophic solution of a doubt, or a truth? But I shall, farther on in my recital, have to deal more practically with this topic, because I shall be drawn to its revelation by the inevitable force of circumstances and incidents.

II.

THE INCIDENTS.

Two months previous to the murder of the Joyce children I had been residing at the house of an acquaintance, a mile away from the village of Jamaica Plain. The front of the house looked out upon the road leading from Boston and passing through the village of Jamaica Plain far away into the back country, and onward,—a pleasant drive for those city dwellers who had only afternoon opportunities for rural inhalation. The rear of the house gave view of a meadow watered by a tiny rivulet and up to the woods of Bussey. This rivulet was the one that went by the body of the boy, and where it was concealed by its woods and weeds. The distance from our back porch to the spot where the body of the boy was found, was about four hundred yards, and to where the body of the girl was discovered, probably twice or thrice that number; so I was rusticating near the footlights of the theatre, little dreaming that, when the curtain rose, how terrible would be the drama that would drip the stage with blood.

I have long since made up my mind that the most extraordinary events transpire from a condition of repose, else we would never be startled. The first earthquake is the terror; the residue are but affairs of mercantile and architectural speculation. Whatever is striking is struck quick. The practice of the prize ring is the theory of wonders. The shoulder of a man propels a complex system of muscles, and a man in front has his countenance smashed. The suddenness of the experiment accounts for the surprise at its result. Preparations for great deeds are not always apparent. A coup d'état is such because it is a coup. The killing of Mr. Lincoln was more astounding as a positive deed than the beheading of Charles the First, or the razoring of Louis the Sixteenth and his Queen, daughter of the Cæsars. In the case of the President, silence and mystery kept pace with the public confidence in his personal safety; in the case of Charles and Louis, the politics of a people had long been disturbed and outraged with regard to the traditional sanctity of kings, and there was preparation almost evidently looking to the final result, and the prelude, from the very nature of those governments, admitted of hardly any other epilogue; but with Mr. Lincoln it was different. He sat in his box at the theatre, secure, in a war brought to a result suitable to his

designs, with pleasant painted scenery before him, a comedy of brimming humor in course of acting, altogether in the very last place he or any one expected that the blow upon his life would fall; but it fell, and the world was astonished. Thus,—with the meadow and its brook before me, with the grand belt of woods bowing over the fence, with the soft air of summer in the boughs, with the mowers in the grass, with the sunlight blinking through flower-stems and vegetables of homely nomenclature, but admirable qualities,—I sat in the porch of my summer dwelling; and while I sat there, musing and idling, a deed was done, so wicked, so ruthless, so hideously unessential, that even now, after the lapse of so long a time, I feel the need of a new word,—a word with the thunder and the lightning in it, with the curse of man and the anathema of God in it, to express the sensation it produced.

Those woods were to me a delight beyond all computation. To look at them, to go into them, to sit underneath them, to watch by the hour the veins of moss and the bark of the tree boles, to follow the curvature of the limbs as they grasped at the white clouds passing, to see the blue eyes of the sky peeping at me as I stared at them, to listen to the nothings of sounds that all men have heard in the sylvans, to forget in the balm of the scene the bitterness of memories and knowledge,—furnished me a mighty feast of harmless and negative enjoyment. With these feelings which I have not exaggerated,—keeping in view this sanctity of nature, for so many centuries uninvaded by any crime, save and except that doubtful one, of lovers meeting there to love outside of domestic parlors,—I perhaps more than anybody else was personally outraged at the act which not only destroyed human life, but smote the peace of the presence which Heaven had bestowed upon the scene, sublime in its ministering to a waif out of the wreck of revolution. I feel confident that to those persons who indulge in the faculty of thought beyond counters and desks, I need make no excuses for these digressions; for they will at once perceive that I am at least exhibiting one phase of the prelude to those terrible atrocities. The incident of my vicinity to the spot has great weight with me in the writing of this narrative, as it would be to those persons, who, though not being able to witness the actual battle, see the smoke of the conflict and hear the reverberation of the dread artillery.

III.

THE SCENE.

It was on Sunday evening, the 18th of June, that we had the first intimation of what had been going on in those great shadows opposite to our house. I was sitting on the eastward porch,—which I said before gave a lookout toward the wood,—and had been sending up my quota of cloud to mingle with the fraternity of vapor around the setting sun (my pipe, my laboratory), when, as the shades grew purplish down in the ravine by the brook, I heard repeated shouts. When an ordinary stillness is violently broken, there follows a shock to the nervous system, repeated upon it by sympathy with the divinity of silence whose reign has been disturbed. Sometimes terror commences at once her frantic flight over all the barriers of reason; and again, anger beats back the blow with imprecation. But when the long-continued hush of a great forest, the mystic sleep of rocks and trees, of air itself pervading a radius of miles, is suddenly and sharply interrupted by that peculiar intonation of human outcry, which declares an event out of the ordinary train of circumstances, and when those outcries reach us out of thick concealment, wonder and dread assume control of our faculties, and make us pause almost in our breathing, to catch some other cry of different character by which we can determine the cause and nature of the first. I had heard from the paths and shades of those woods, during the summer, various kinds of human noises; but none of them ever reached the mad gamut of the one which had smitten the air but a moment since. Those other cries came from children, grown and ungrown, romping in happy energy along the glades,—from picnic parties calling to each other and replying as they separated after the feast of sandwiches,—and I had got to understand them all; but here was a yell that had in it the modulation of groan and spasm, uplifting of hands and straining of eyes, relaxing of muscles and whitening of faces, with stops put upon it by the fluttering pulses of the frightened heart; and imagining nothing of anything terrible that could have happened under that so pleasant roof of waving foliage, I sat paralyzed in the abruptness and terror of the interruption. But I was not kept long in such suspense. The news now came up from the dell that the body of the missing boy was found. The search of police and citizens had

been conducted on the principle of an open fan with the handle held by the chief at the house where the children had been living. Thus the whole region on either side of the route known to have been taken by them was thoroughly gone over and examined, until the pursuit, almost despairing of success, reached the Bussey wood, expanded around the base of the hill, leaving no clump of bushes unexplored, until, upon that quiet Sabbath evening they found the poor boy lying dead in the midst of a thick screen of alder-bushes. Soon afterward the girl was discovered, but not, I believe, by parties actually engaged in the search. Two men unsuspectingly, perhaps unknowing of anything about the missing ones, strangers, it is to be supposed, and in the woods for a Sunday's stroll, came upon a group of rocks lying a little off from the path at the southern terminus of the hill, and overlooking the common road of the county that leads to Dedham. Here, stretched in the rugged fissure of the rock, or rather in a basin at its base, lay the stabbed corpse of the sister. Another alarm, and the second part of the drama was concluded.

IV. THE BROOK.

So this much of the mystery was explained.

These children had left their home a week before, purposing a little trip, that was to last only a few hours, to May's wood, midway or thereabout between their starting-point and Bussey's wood, where they were subsequently found dead. During all that week of vigorous and unwearied search by the police of Boston and Roxbury, joined in by that of the rural localities; while the sun shone so bright and peace seemed so perfect over and within that green glory, while hundreds of people as usual, suspecting nothing, came into and went out of old Bussey's groves; these two dumb humanities lay,—the girl, with her poor fright-marked face towards the sky, appealing to it for testimony and redress, the brother prone to the earth by the sly little running stream, both stabbed over and over again,—for thirty-four times did that mad arm rise and fall,—their bodies rough with the clotted gore of their hideous wounds. The public stood awe-struck in the presence of this spectacle, and parents trembled when they saw such evidence of duty neglected in allowing these waifs to wander so far away from home. (Or were they accompanied, and by whom, when they went away?) For a time the junior members of families had to confine themselves to a more restricted sphere of locomotion, and the thought of murder haunting them drove them like curfew to their homes at dusk. The latitude heretofore extended to, or wrenched by, Young America underwent a revision, and the juvenile eagles and doves of the social roosts were forced to bend to the yoke of a new dispensation, the justification of which was found in the fate of those two hapless wanderers who had been found slaughtered in the woods of Bussey. Seldom, in the annals of crime, was there so great an excitement as was manifested, not only in Boston, but throughout the entire country, when the fate of the lost children was made known by the public press. In one week afterward the woods were daily crowded by people from the city and the suburbs, with parties from the distant towns, and I met one man, wandering about in a white state of nervousness, who said he had come from Maine to look at the localities. An artist of one of the New York illustrated papers, with whom I went over the

woods, in company also with a policeman who had been detailed for the purpose of pointing out the spots to the man of wood-cuts, told me that in New York the murder of these children had caused a greater excitement than the killing of Mr. Lincoln. I could well understand that,—for the one was in its chief features, a political event, while the other appealed to the commonest sensations of our nature, through the avenues of mystery. On one Sunday alone, I was told by one of the rural officers, that more than twelve hundred people, men, women, and children, had visited the blood-stained places of the murders.

One great misfortune was inevitable from this sudden and continued irruption, and that was the total extinction of any foot-track of the murderer, or any vestige of his garments which might have been torn from him in the struggles with the stronger girl, or the conjectured chase he made in pursuit of the fleeing boy; for strange it was, that the bodies were found separated by several hundred yards of distance, an interval of dense wood and shrubbery closing in in all directions.^[1] The one, as I said before, was killed on the summit of the hill; the other, at its base. As strict an examination as it was possible to effect was instituted, by the police authorities, of all the paths leading to the two spots of deepest interest, of every brake and shaded place; and very useless was it soon found to be in the vicinity of the death-scene of the girl,—for there the ground was dry and rocky; but where the boy was found the soil was moist, and had not the paths been constantly travelled over during that silent week and afterward, it was there that some clue might have been found, the footsteps of the assassin evident, kept there by that inscrutable and puzzling fatality that frequently attends on such events. The party of discovery, however, not having the police presence of mind at the moment when they came upon the desolate object, obliterated, by an unconscious complicity with the assassin, and demolished, in their eager rush, any marks he might have left; for at least to that body no one had approached, and the footmarks of the only living witness and actor must have kept company with the bloody corpse throughout that interval. Thus everything tended to shield the doer of the deed. The dry ground and flints around the girl; the very solitude of the boy's last asylum, to whose protection he had fled with the breath of his pursuer hot upon him; the rain that fell afterward, and that fatal week's concealment,—gave him ample time to perfect his plan of evasion; and well did the demon use his opportunities; for, up to this moment, the public is in possession of no clue

by which he can be brought to the expiation, if human expiation be possible, of his unparalleled offence. Whatever may be known to the mysterious agent of legal vindication, the keen-eyed chief, we cannot discover; possibly there is nothing to discover, though I do not agree to that; he may be waiting for one of those redressing incidents by which the chain of evidence is united,—incidents simple of themselves and reaching forward out of doubt and difficulty, and helping the law to a fulfilment of its intentions.

FOOTNOTES:

[1] Since I finished writing my narrative, a friend has informed me, that, visiting the wood sometime after the discovery of the bodies, and while searching for the exact spot where Isabella Joyce was discovered, he picked up a portion of an old green coat, or some other habiliment, and carried it out in the road to his friend, who was waiting in the carriage the issue of his search, to show her, in joke, as a relic of the murderer's dress. His friend instantly grew serious over the matter, and to this day believes it to have been worn by the man who did the murders.

V.

THE DOGS.

And during all that week I had pursued my usual monotonies, happy that they were such, tired to death of battles, and the bulletins of newspapers, which had added such a tangle of falsehood to the wickedness of slaughter; happy that I was where I could see the sun rise and go down without touching with his ray, so far as my rustic horizon was concerned, a soldier's tent or a soldier's grave; moping, in the very licentiousness of laziness, with my seraphic pipe between my teeth, over a thousand trifles, such as ingoing and outcoming of shadows on the leaf-domes of the woods; enjoying the soothing spasm with dinner of green peas, fresh pulled from vines that in my airy fancy called back old travels through the low shrubbery of the French vineyards; having now and then a townsman's visit to cheer me back, if cheerful it be, to a consciousness of taxes and municipal street-sweepings, of city lamps lit up as regularly as the night came down,—a visit that in its way was as pleasant to me as the old trees or the gray rocks crowding around their base; a friend to sit with me in the old back porch and look at the grand wooding of that desecrated hill, to sip with me the test of hospitality, and smoke the pipe of peace in the peaceful air that takes no offence at the indulgence of any method by which honest men earn the recompense of honest living; avoiding all topics of scandal, blessed in that rural asylum in the absence of all objects of scandal; going into the woods now and then and often, out of which, like Peter the Czar, I had built my city and peopled it with my own people; and all the time so ignorant of the two dead children who lay within easy range of my vision. There they lay all that festering week, and here was I so near to them, following out the idle purpose of a perhaps useless life,—they perhaps of no greater use to all the world in their dead slumbering than I in my grand philosophy of lethargy.

My host was blessed with two dogs, and, very oddly, they bore the same name, Jack. One was a bull-dog, but, strange to say for his breed, of a sweet and even, more than common, Christian disposition, inasmuch as I never knew him to turn from the person he had once elevated to his friendship. In his firm, calm old face, there was nothing of deceit. Making his

protestations of love to you in his own way of muscular revelation, you might be sure of his proffer, and that he never would trick you out of your confidence. I have known bipedical bull-dogs do otherwise; and they turned out afterwards to be such arrant cowards that even my solemn Jack, could he but have become acquainted with their behavior, would have swept them out of the sphere of respectable personalities by the vigor of his superhuman sincerity. The other dog was a fighting character, and as such I had not much sympathy with him,—war on a larger and more brutal scale had sufficed me,—and yet about him there was a geniality and honesty and pluck, that forced you, while you recognized his “belligerent rights,” to offer him your respect,—at least I did; and so there were times when he was allowed to accompany my placid Jack and myself in our woodway journeys. Friendly as they were with me, there was another whom they loved with the fervor of canine Abeillardism, and that person was their master, my host. I mention this fact now because it bears upon an incident of a very extraordinary nature, and which I will state in its proper place.

At present I have but to add a few words about these dogs. Though they bore the same name, they perfectly understood when they were separately called; that is, they comprehended their own individuality as we individualized them. I never knew them to make a mistake. Thus it was, Jack the gentle was never addressed, or had his name called, except in just such terms as we would use to a human being gifted with his rare qualities. Jack the fighter, hard-biter, great cat-worrier, knew when he was spoken to well enough; for the manner of the family was such as they would use to a retired or active member of the prize ring, a tone half of uncertainty and the other half of admiration. They were, in fine, two distinct characters, bearing the same name; but our voices being adapted to their peculiar idiosyncrasies, they sensibly drew the line of distinction in sound, and understood us.

It would be worth any one's while to get two such distinctly different dogs in character, and try the experiment of similar names. It might at least afford Mr. John Tyndall, LL.D., of England, some hints to his theory of sound.

VI.

THE FLAT BRIDGE.

So one week had passed since the committal of the murders and the discovery of the bodies,—and the bodies lying in a wood so frequently, indeed so constantly and largely visited. One would have supposed that they would have been discovered half an hour after the deeds were done; but, to understand why it was so long concealed, you must visit the wood itself in the leafy month of June, and then you will find out what a hiding-place it can be turned into. Now the spot where the boy was found was a few feet from the little stream frequently mentioned, and this stream was spanned by a flat bridge just enough elevated from the surface of the water to allow it to flow freely underneath. This bridge led over to a half-obliterated path that you could with a little care follow until it brought you to the regular path that led from the lower bridge, and which I before observed conducted you to the rock where the girl was found, and farther on to a spot which I am soon to speak of. This lower part of the forest is composed of open spaces filled with low shrubbery, small and close-growing pines, and by the brook-way with densely thick alders. There is a wall running west from the brook, dividing the property of my host from that of Mr. Motley. Mr. Motley's property, along the wall to the north-west, is composed of a wood of great beauty. The path to which I have alluded connects with the main county road that circles Bussey's wood to the east, and it was by this path that my host was in the habit of returning from his daily city business, sometimes a little after sunset, but generally not earlier than nine at night, and frequently later. Relative to this circumstance I have hereafter something of an extraordinary character to make mention of; so it may as well be remembered.

The low, flat bridge was about fifty feet from the corner of the dividing line, and less that distance from the scene of one of the murders. Near to it ran the path my friend had to pursue on his return at night. In my walks, before the murders, I had passed over this bridge almost daily, and afterward, during the sealed week, I had not interrupted my habit, though probably I did not go that route as often as before, for the weather was getting intensely hot, and kept me to the woods nearer the house. In these

walks, however frequent or seldom, I was accompanied by old Jack; and though the body of the boy, at one part of the track, lay not more than ten or fifteen feet away on our left, hidden in the shrubbery, the dog never attempted to approach it. I remembered afterward, when everything was revealed, that as soon as we got over the bridge, he would walk quietly at my heels, keeping as close to me as possible; but when I had advanced to the denser wood, that clothed the base of the hill, he was all alive, plunging in every direction, and opening with a courageous vigor upon the up-tree, defying squirrels. I blamed him much for his reticence; for I felt assured that both he and his namesake had, before that, perhaps on the very day of the deed, gone into that dense mass and gazed upon the slain. Be it as it might, his manner changed completely whenever we passed by that red resting-place.

On the morning of the murders—the 12th of June—I had prepared myself for sketching (I have that gift, moderately to be sure, but yet with wonderful kindness extended to me by a beneficent Providence), intending to make a memorandum in oil colors of a group of rocks a hundred yards or so beyond (eastward) the murder-rock, and to which I have already referred. These gray rocks, that I intended to sketch, can be seen from the road leading up to the hill, by which you reach, from the direction of the railroad, the outer scarp of the ridge behind which the girl was found. And this is the route by which the children may have reached the wood.

As the sun rose higher in the heavens the heat increased in proportionate intensity, and when I was ready to start, say about half-past ten o'clock, I was glad to second the persuasions of my friends not to venture out in such seething weather. Probably it was providential, or possibly a great error, that I did not accomplish my original design. To reach my objective point—the picturesque rocks which had so fascinated my sense of the beautiful—I would have been obliged to follow the path, first over the low bridge, and subsequently within six or seven feet of the spot where the body of Isabella Joyce was first seen. Now, it is a well-ascertained fact, that the children left their home by the cars sometime about eleven o'clock on that morning. Their intention was simply to go to May's wood, nearer to Boston than Bussey's. What induced them to change their purpose, and advance as far as the latter, is *partially* a mystery; and though I have a well-digested theory upon that very important—indeed, all-important—point, I must withhold it;

for well I know that if he is alive, one of the first persons to read this narrative, on its publication, will be the murderer himself, and I cannot afford to give him farther chance to plot explanations and arrange evasion by any word of mine. Leaving home at about eleven, in three-quarters of an hour, or less, they could reach Bussey's wood (for I take it for granted they did not tarry at May's wood, persuaded by *some one* to go farther off from Boston), say, about twelve o'clock. Give them time to gather leaves and wreath them, as they did,—a wreath being found around the boy's hat, and portions of wreaths about the murder-rock, where the girl had evidently been employed in such amusement,—and we reach half-past twelve, or perhaps a little later; and that is the time I have fixed as the epoch; for after that, whatever of garlands were woven, were made by hands we cannot see, but only hope to see. Now, had I not changed my intention to sketch that forenoon, I would have passed by the path beyond which, hidden by the woody screen, the girl was afterward sitting, and also grazed the spot whither the boy had fled, or been thrown; but it would have been before they had entered the wood; but I would have been at work at the moment of the killing, or, mayhap, passing within a few feet of the place where Isabella Joyce was murdered, or, after being murdered, concealed.

If, in passing at the moment when the deed was in the act of accomplishment, and I had heard a cry ever so feeble, I would, unquestionably, have proceeded to inquire into its cause; and had I come upon the brute, and been at the instant in possession of as much pluck as I had weapon,—an iron-clasped, well-seasoned, heavy camp-stool,—he would have fared badly; for, once up, my arm is one of very admirable development, and my temper not the best calculated for easy martyrdom, and I might have saved her life at least, and in doing which, an incident might have happened which the fiend would not have had time to remember—in the flesh. Or, if I had not passed at that exact exigency of time, but was engaged in my sketching, I possibly might have been startled by her outcry for mercy from him, or appeal to others, and by the manhood that is systematized, for the defence of the weak and wronged, in this six-foot carcass of mine, I would have gone with utter ferocity to the rescue; but with what success crowning my enterprise, is only known to the Great Inscrutable. However, had the murderer accomplished his bloody purpose on the girl, and was following the boy, and I had passed downward to the level bridge, I might have seen that supplemental tragedy, or arrested it, and

taken the culprit red-handed in his course. I would, under any of these circumstances, have been more happy in my life, had I been the means of saving two other lives, or even one, though I question much if it would not have been at the expense of another life as yet unclaimed by the gibbet.

Barring all these contingencies, and taking it for granted that I had passed in and out of the wood without detecting anything of those terrible occurrences, it might have fared ill with me in the subsequent phases of the affair, for there was a strict investigation made as to who was in that wood during that day; and beyond a question, as I would not have attempted to conceal the fact of my presence, my friends of the police would have laid their justifiable hands upon me, and placed me in the black category of the suspected. In mentioning this idea since to my friend the logician of judicial mystery, the tall chief of the force, he assured me that I would not have been interfered with, as I did not come in the least within the principles of his theory of the murder. But that did not exempt me, as I shall proceed to state.

VII.

SUSPECTED.

Keeping in view the fact of the week's concealment, my reader will readily understand that I had no inducement to change my usual habits, so far as the woods were concerned, and I consequently kept up my visitations; but as the heat was growing daily more severe, I did not stroll far from the house, but confined myself in the main to the wood that reaches from the brook to the westward road in our front. I avoided thus pretty much my former walks, which included all that space lying between the flat bridge and the old gray rocks it had been my intention to make a memorandum of. Now and then, when the heat of the day had subsided, I went as far down as the stream; for exceedingly cool and pleasant was it there, and quiet, too, in the shady evenings. Sometimes I took my sketching apparatus, but oftener went without it; but it seems that, however I might go, I was not to do so without creating a terrible suspicion.

The search, prompted by public duty, or instigated by private curiosity, had apparently worn itself out, when, upon a sweet morning, some two weeks after the discovery of the bodies, I stepped out of the front door, and saw, sitting under a shady tree in the stable-yard, holding converse with my host's father, a member of the policeman fraternity. Naturally enough, thought I, this vigilant is wandering round to see what he can pick up of stray hints and suggestions that may lead to the discovery of the criminal, and the obtaining of the large rewards that had been tendered by public and private liberality. I recognized the policeman at once, having often rode in the car on Tremont Street which he conducted. Circumstances then induced quite an acquaintance of great kindness between us. He had been left for dead after one of the great battles in the Chickahominy, slaughtered by four or five bullets of the Southern rifles, but picked up and cured, and fated in after days to have the high prerogative of being put upon my track as one of, if not the bloody villain of all, concerned in the killing of the Joyce children.

I went over to where the two were chatting under the bee-laden lime-tree, and, after hand-shaking with the ex-dead soldier-policeman, I helped to

keep up the conversation, which flowed naturally upon the subject of the universal curiosity. He smiled a very peculiar smile when he saw me coming to him, and the farmer smiled, too; but that passed in my mind for nothing more than the fact of his meeting with an old friend. Ah! little did I think, while I smoked my pipe and gossiped so sociably with that placid friend of justice, that it was especially to find who the tall, dark stranger was, who, with a bowie-knife in hand, and great firing of his revolver, roved those haunted woods of Bussey. I did not know until he had shaken hands and gone away; when the farmer told me that the policeman had come to inquire who it was that was living with the family, and what my habits were, and where I was on the day of the murders, etc. My coming out of the house had interrupted this diabolical inquisition, and, upon seeing me, they both had looked at each other and exchanged a knowing smile, which, interpreted into English, could be spelled out thus: "Oh, I know him!" on the part of the policeman; and "You're sold this time," on the part of the farmer. The fact was that a youth, with his head full of ghosts and shrieking children, had seen me in the vicinage woods before and after the murders, and, frightened at my pallette knife and my ball practice, had hastened to the station at Jamaica Plains and made report of the terrible bandit and assassin. My friend of the police has often since laughed with me over the adventure, and I have almost grown to look upon myself as a gentleman of rather a forbidding and ferocious cut, and feel prepared to let myself out to some of my friends at the Studio Building as a model for any species of brigand, of Italy or Wall Street; or, if it be not treason to say so, of State Street, Boston. There is something, after all, in being remarkable. However, it so happened that in one way or another I became a satellite to the sanguinary meteor that had swept over those woods, and, had I allowed it, I would have grown into a morbid mass of melodramatic idiosyncrasy. But the worst had not come yet.

VIII.

THE MURDER-ROCK.

In the mean time, the inquest had been convened, and their verdict of murder, with the words, "Done by some one unknown," blazoned to the world, and stating that twenty-eight stabs had been planted in the body of the girl, and also announcing a grievously erroneous theory of the deed. The wounds upon the girl were chiefly in the back, as if the first assault had been made while she was stooping over her work, her wreath, perhaps; but afterward, as she despairingly confronted her assailant, the remaining stabs were given, while she could yet see the rapid lifting and falling of his arm. It is not an assured belief in the police theory of the deed, that she was killed upon the spot where she was discovered; and what specific reasons they have on that point, I cannot readily get hold of, unless it be based upon the fact that, had she been attacked only a few paces from a frequented road, her cries would have exposed the culprit to the risk of detection, and of that he naturally would have considered; and in that view the theory has some force, for it certainly was a better place in which to conceal the body dead, than attack it living. All around this spot, the trees, as I have previously described, grew densely, and a new visitor could easily lose his way, so that the deed may have been perpetrated in the wood, and the corpse drawn to the concealing formation of the rocks, as they were away from the path, and not very likely to be visited. However near the truth may be the theory of the police, there was evidence discovered at the time the body was revealed of a struggle, and a violent one, at that very spot among the rocks. There was a sapling bent and broken at the westward end of the rock, and its breaking was recent,—not done by any strong current of air, for there had been none, and if there had been, no wind would break that pliant stem and leave the vulnerable trees untouched. Had nothing of importance happened at this very spot, we would have to look for an explanation somewhere else, if we deemed it of importance. It evidently had been broken within a few days. Was it broken by some one who had visited the spot ere it was invaded by the two strangers on that Sunday when the body was discovered? That is hardly possible, for if it had been so, the body would have been seen, and the fact disclosed at once of her

murder. Was it broken in the struggle that ensued between the murderer and his victim? How could she break so tough a bough? Why should he? But at all events, there it was, some four feet from her body. I saw it, and testify to its being there, and to the fracture being of recent date. It might have been broken by the man as he ascended from the road to the rock, for it stood where he might grasp it in his ascent; but that could hardly be; and there was no need to break it to give passage to her body if it was drawn from the spot where she fell, farther off. It was evidence of something that had happened, but a testimony of nothing that could properly and naturally attach itself to the murder. Cattle could not have done it, for they never were permitted in these woods, though a lad, who guarded a drove down on the pasture lands below the hill, was examined upon the idea that a madman had committed the deed in his frenzy, and he happened to be not of the sound order of brains. He was exempted from further suspicion, as well he might be.

The spot on which she lay was the convexity of an abrupt whale-backed rock, running some fifteen feet east and west, and guarding any object at its base from the sight of persons passing along the road. Crumbled flints abounded thereabout, and a hard and cruel bed it was for a sleeper, dead or alive. When I first visited it there were no marks of so terrific a scene as must have been enacted in her killing, save the doubtful sapling that lay broken and prostrate; but above the spot where her piteous head had fallen, some pious visitor had placed a cross, with a card affixed, that informed the public of the name of the poor sufferer, and a prayer in her behalf.

One week after the discovery of the body of the boy, the thick coppice and bushes that had concealed him were stripped away as memorials of the incident, and the ground about trampled by more than a thousand people; while the slimy mud oozed up as if eager to suck in more of the ghastly nutriment that had flown so freely in the first and final struggle of his death.

IX.

SUSPICION.

As a matter of course, several arrests were made after the delivery of the verdict by the coroner, and rumor plied her busy trade with an increased variety of tones. Our rural neighborhood rose at once into the importance of a public spectacle; and full-orbed curiosity roved the highways, questioning all kinds of people with all kinds of interrogatories.

There is always a plentiful supply of ready-made murderers in almost every well and long-established settlement,—men who look cross and act cross; who come home at mysterious hours and in mysterious ways, with slouched hats and shabby shirt-collars; who are not often if ever seen in church; suspicious fellows; just the sort of fellows to be talked about whenever anything bad has happened; but, perhaps, after all said and done, as good as their neighbors, indeed, sometimes better than the gossips who prate so lavishly about them. But they serve a purpose; and to that purpose some of them were put at once; and they bore it, and will have to bear it again. It is pretty much a matter of clothing. One day the whole thing was out,—the murderer was known. A neighbor's farm-hand had fallen in with another neighbor's farm-hand, steering his ox-cart upon some errand of slothful industry, and from the ox-driver he had learned that the said driver, on the noon of the murder-day, had met the boy and girl (boy and girl described) on the road between Mr. Motley's house on the hill and the blood-stained rock, and soon afterward he was overtaken by, or he met, a swarthy man with a black mustache, heated and in haste, pursuing the same line of travel on which he had met the children. Yes, he could identify that man. He looked eager and fierce, with his dark skin and twisted moustache; and those were the real children, and he their murderer. He had seen the lambs, and he had looked upon the wolf. This story bore the semblance of possibility; and we were all prepared to hear of an arrest and identification. By night, however, the narrative had undergone some modification, but not losing in the vigor and picturesqueness of the original drawing,—rather otherwise. I immediately sought out the author of the bulletin, intending, if there was any substance in it after thorough investigation, to report the facts without delay to the proper authority.

True, the clodpoll had seen two children on that road; but it turned out, on cross-examination, that he saw them on the day after the murder; but the portrait of the eager and mysterious swarth, with his curled mustache, had been inserted by the more imaginative brain of the man who repeated the intelligence. So all that card-castle of discovery fell to pieces. Then, again, a gallant and bullet-maimed officer was put under the ban; and wonderful items grew into robust legends, that would have delighted the immortal Sylvanus Cobb, Senior. The bloody tunic of the man of Mars had been washed by the terror-stricken nymph of soap-suds, and she was, inasmuch as she had “talked” of that red evidence, forthwith discharged from the wash-tub of the family. This belief in the guilt of the maimed officer took such emphasis of accusation as to enforce from his friends a proof that he was, on the day of the murder, far away in a Virginia city, engaged, among other things, in writing his name in a lady’s album. One evening, after the Sunday’s discovery,—it might have been ten days,—as I was riding up the hill that led to Mr. Motley’s mansion gateway, and when I had reached the summit, I came upon a young man standing a little off the main road. He stood there but a moment; but in that moment I saw that his eyes swept in that section of his view which embraced the accursed trees of Bussey’s blood-dyed hill, but with no look of white affright in them; and then, with his one arm swinging,—the other maimed in some battle-field of the South,—he went onward to the gate. That was the officer who had with one arm committed those dual murders, even while he wrote his name in the album of a lady in the old city down in the Southern country.

From such things does the monster Gossip make up a verdict, driving in shame the innocent to a defence, while giving to the one of guilt the benefit of an arrested search, or a postponed accusation. Driven from this stronghold of suspicion, away went greedy Accusation down among the shanties of the Irish workmen, along the line of the railroad; but nothing there was brought to light beyond the existence of pigs, poverty, and all the other poetries of Hibernian habitations.

In the midst of this confusion of assertion and contradiction, of hope and disappointment, a luckless house-painter, of a religious turn of mind, and a taste perhaps of fluidical enjoyment, fell into the hands of the inquisitors, and, at the time, it must be confessed, with some circumstances attendant on his movements and position that gave color to the theory of his criminality.

At his house the boy and girl had boarded last; from his house they started on their terrible adventure; and it was said that he was engaged on that day to do some work at or about May's wood; and so they linked him with the two pools of blood out in the shades of the fearful woods. There was a judicial examination; but naught came out of it to warrant his detention, and so he was sent about his business rejoicing, with a clear skirt, and a eulogistic letter from the clergyman of his parish. The incident seemed rather to have worked to the advantage of the window-sash artist; and, in the full enjoyment of his acquittal, and the continued performance of his grave religious duties, this history must leave him.

And yet another. A young fellow was arrested, and lodged in the county jail at Dedham, of whom there was not the slightest doubt of his being the man. When arrested, it was proved that he had been absent from work on the fatal day; that his hands were scratched, and his clothes spotted with blood; and that he had been drunk on that night, driven, it was religiously and philosophically construed, into that beastly condition by the reproaches of his conscience. Ah, he was the very man! He looked, in his dimness of drunk and tatterdemalionism of garb, like a real Simon-pure unadulterated murderer. The rope was ready, and the coming carpenter dreamed of a gallows on which he was to swing. But the rope had not yet been twisted, and the carpenter had only dreamed; for it was established as follows of his biography: He had been absent from work because he had no work to attend to; he had been drunk because he loved bad whiskey and good company; he was scratched and blood-tinted because his valor and his bottle had led him, at an ill-reputed tavern, some two or three miles up the road, to attempt the vindication or assertion of his philosophic, philanthropic, political, or religious opinions and dogmas, by quotations from the library of his fists and muscles. So he, too, got out of the clutches of the law, and stands, or staggers, now, ready at any moment to be arrested upon the same grounds for any similar offence, or other offence, that his neighbors may think him fit for.

There was one other case of suspicion, but no arrest; and as it illustrates the uncertainty of circumstantial evidence somewhat, and is a little singular, I will relate it. A young fellow of variegated habits worked in a large rifle establishment near one of the city limits, distant from the scene of the murders some four or five miles. One of his habits was to rove into the

suburbs, seeking his recreation according to his fancy. This fact was a strong circumstance against him; for at that time the theory of the twofold character of the crime had not been relinquished. Up to the period of the murders, this youth was the life of the establishment where he was employed, full of tricks, and jokes, and happy, ceaseless good-humor. On the morning of the 12th of June, he was absent at roll-call; but at *one o'clock in the afternoon he was there and answered to his name*. Whatever had happened, a great change had come over him. He was no more the jubilant and frolicsome madcap of the day before, but sullen to moroseness, and his face was strongly sunburnt, and altogether his whole appearance and behavior indicated a transformation as singular as it was sudden. When questioned, he admitted that he had been in the woods somewhere, but would speak no more upon the subject. In search of any, the slightest clue to the discovery of the mystery, the police soon came into the possession of these facts, and suspicion fell darkly around him. Upon farther inquiry, it appeared that he had converted two files into poniards,—one he had given to a friend, the other he had kept. The day afterward, while the police were making these investigations, and keeping him, as they thought, unconscious of the fact, he disappeared, and has not been heard of from that day to this. One of the dirks when applied to the wounds fitted exactly. I have seen the one he had given to his comrade, now in the desk of the chief. A long, ugly weapon it is, sharp at the point, and double-edged, equal to a bowie-knife ere yet it has arrived at the point of complete perfection of destruction.

But he was not the man. Why he fled we may conjecture. Doubtless he had heard of the advance of the authorities upon his steps, and feeling that appearances were against him on the first blush of the investigation, and not being logically disposed to examine into the importance of minutes and hours wherein lay his absolute defence, he fled affrighted at his dangerous position. He was innocent, because he answered his name at *one o'clock*. Had he done those murders he never could have reached his workshop at that hour unless he had hired the magic of a necromancer, or been mounted on the fleetest horse that ever won a race; for the murders were accomplished soon after one o'clock. Had he not answered to his name at the hour mentioned, he would have been arrested, though still he would not have been guilty. *It was another man who did those deeds.*

X.

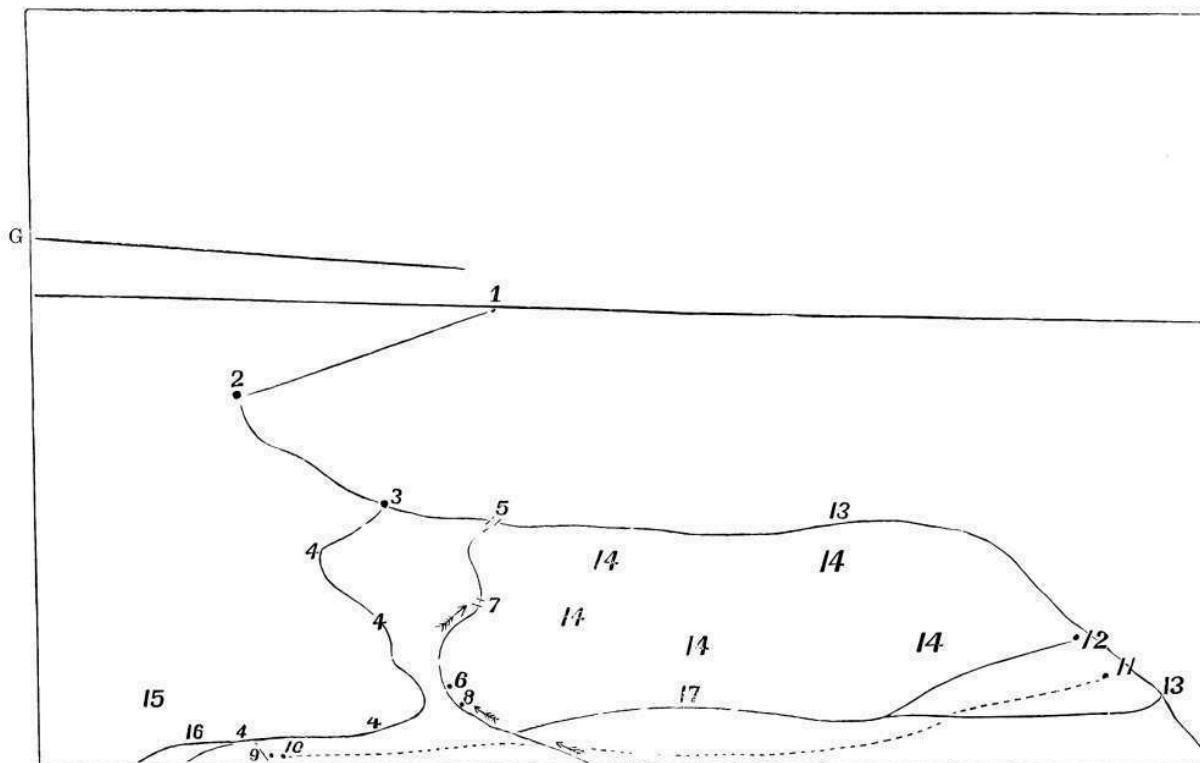
WAS IT A GHOST?

And after that a heavy silence fell over the mysterious murders of the Joyce children. The officers of justice, to whom I spoke during that time, looked wise and watchful, and held to the belief that the malefactor would yet be found.

I come now to a portion of my story that I assure my reader is, in every respect, true. I know that only one-eighth, or even a lesser moiety of the world, will give me credence; not that they will directly question my plighted word, but they will question the philosophy of which my experience is a phase; but who knows but that it may be an actual substantiation? So assured was I that no deception was practised upon me, that it was only the other day that I made a statement of it to Mr. Kurtz, the chief of police, to whom I had occasion to speak of my design to write a narrative of my knowledge and experience in relation to the unhappy incidents of the murder, putting it to his discretion whether I should go on and give my writing to the public. I had some misgiving as to the propriety of saying anything of such importance while it remained in its present apparent quiescence; and though it is not essential to my purpose to repeat our conversation, I feel at liberty to say that he favored my design most cordially. But with regard to my revelation to him of what I shall soon put my reader in possession of, he did not evince that unpleasant scepticism which so often borders upon the insolent, and listened to my narration with the evidences of a respect that at least bore the semblance of belief. I must confess, however, that he somewhat startled me when, at the conclusion of my recital, he put to me this practical question: "*Do you think you could recognize the man?*" That question, the reader will perceive anon, was somewhat of a staggerer; but I rallied under the belief that the head dealer in the positive had not quite grasped the peculiar significance of my revelation, and since then I have seen something—a something which he has in his desk, and which may appear hereafter—that would, if I deem it necessary to test my idea, perhaps enable me to say to him, "I can."

It was quite three weeks after the blood of the unhappy Joyce children had been mixed with the leaves and ooziings of that mysterious wood,—when everything was falling back, in our country side, to the old order of simple occurrences,—that, upon a still and clear night, I went out of the cottage where I still lived, and, taking the two dogs with me, strolled down through the stable-yard, and past the garden, until I came to the brow of the hill that formed the apex of my friend's grass-lands. The brow of the hill was flat all about me, commencing its declension some hundred and fifty feet eastwardly from where I stopped, and at the base running off into a meadow, the opposite side of which was overlooked by the Bussey wood; and, from where I stood, several pines rose out of the even surface of the forest, marking, as with an uplifted hand spread out, the place where the murder of the girl had been done. I have to be particular in my description seemingly to tediousness, but the singularity of what transpired leaves me no choice; for better, on such a matter, not to speak at all than not to speak explicitly. I resume. The grass was short on the brow of the hill, not over a few inches in length, improving in quality as the descent reached the valley. There was a tree near me; but that I left behind, putting it in my rear some ten paces, when I stopped. On my left was Motley's wood,—so often mentioned,—drawing up with its intense shadows, close to the dividing wall. From the wall to where I stood all was clear and distinct, save where the shadows, or, more properly speaking, the shade fell over the ground, though in that shade there was a secondary light which artists and all thorough students of nature will recognize. The wall and the wood on my left ran down to that corner at the creek, which was only a short distance, about fifty feet, from the spot where the boy had fallen. Some two hundred and fifty yards away, and close to the corner just mentioned, was a clump of trees, and then straight before me, without an intervening object, the dark wood and the hand-like pines, that gloomed, in deeper gloom than night itself imparts, with all her shadows, over the gory rock of the girl's death-bed. My purpose was simply to take the cooler air from the winnowing trees; for the room where I had been sitting with the family was oppressive with lamp-light and the encased atmosphere. I had become so accustomed to the dread localities, that habit had destroyed, with the first surprise and horror, all the keen sensations of a mysterious and indescribable neighborhoodism to the scene. Indeed, I had begun to look upon the whole affair as a story that had been told to me by some such person as the

“Ancient Mariner.” Had it been otherwise, I never could have been induced to stay another moment in that house. I beg to assure everybody that when, at that hour of half-past eight o’clock, I left the parlor to stroll to the brow of the meadow hill, I did not have one thought in my head that connected itself with the murders. Other affairs had turned up, in which I was personally interested, and my mind, though not dwelling upon them at the moment, felt, if it felt anything at all, the reverberations of mental discussions upon the topics I have just spoken of as of personal interest. I think now, remembering everything, that if I had any peculiar sensation, it was not superior to that of the two dogs who kept close to my heels,—for I was there to enjoy the sensuous and physical boon of air; they, indeed, governed by a higher motive, the society of man. I was, consequently, if I may say so with perfect self-respect, in a complete condition of animal existence, and not prepared for or expecting anything beyond the ordinary condition of animal and vegetable life. I was, in fine, nearly upon a level with the inanimate existences around and about me. I am unwillingly compelled to remind the reader that it was the habit of my host, who did business in the city, of leaving the train at Laurel Hill Station, at nine o’clock, as a general thing, and keeping the main road until he got to the bottom of the hill near to where the brook, so often mentioned, crosses the road, entered the lowlands at the outskirts of Bussey’s wood, and thence following the path which led by the boy’s murder-place, and up the hill-side covered by the Motley wood, keeping close to the wall until he reached that point of the wall near which I was standing, passed over it, and was home. It must also be borne in mind that the two dogs loved their master with a steadfast affection; in the case of the serene Jack it was a very jump-about, capering, stump-tail, demonstrative love. Whenever they saw him in the distance nearing home, or knew by instinct that he was approaching, though for the moment hidden by the intervening trees or rocks, they would break away from my minor and only temporary bonds, and rush to meet him exultingly, and then ensued a scene of wild confusion and barbaric dog-taming. These two facts remembered, I will advance with my narrative.



MAP OF THE LOCALITIES.

- | | |
|---|--|
| 1. Steam-Car Line. | 10. Where the Apparition stood. |
| G. Horse-Car Line. | 11. Where the Girl's body was discovered. |
| 2. Motley-House. | 12. The Gate on Dedham Wood. |
| 3. Gate leading into Pasture and Bussey Wood. | 13, 13. Public road to Dedham. |
| 4, 4, 4, 4. Returning route of my host. | 14, 14, 14, 14, 14. Bussey's Wood. |
| 5. Bridge over public road. | 15. Motley's Wood. |
| 6. Spot where the Boy's body was found. | 16. The Wall. |
| 7. Arch Bridge. | 17. Fence between Bussey's Wood and the Howard property. |
| 8. Flat Bridge. | Arrow. The Creek. |
| 9. Where I stood. | - - - - - My route at night to the Murder-Rock. |

Knowing that my host was irregular as to his hours of return home at night,—sometimes arriving by another than the nine-o'clock train,—I was not surprised when I saw a figure lean over the wall for an instant within about twenty feet of me, pause a moment, and then cross over to the side on which I was. Seeing that he stopped, I spoke aloud these words, and none other, thinking of none other: "Hallo, Dan, is that you?"—for, though I could discover the figure and recognize its movements, there was too great

a shade thrown over the wall to enable me to distinguish even the lineaments of a face so familiar to me as were those of my friend. To my appeal there was no reply, and then in an instant the impression came upon me that if it really was my friend, he was making an essay upon my nerves. So up to this moment I never had a thought apart from him. I did not notice the conduct of the dogs, or even think of them, for if I had done so, *I never would have inquired if it was "Dan;"* for they would have been away from me at the first footfall after he had passed the vicinity of the low bridge down in the hollow of the hill; or, having not done that, they would have been at the wall the moment his face looked over it. Nor did I observe that they kept unusually close to me. I did not even think that, if it was not him, it was extraordinary that the dogs did not, without more ado, make their assault; for as a vigilance committee they were extremely zealous in the discharge of their duty, and woe betide the trespasser upon those limits after dark if they once got scent of him! That sedate and usually almost apathetic Jack was equal to a cherubim with a flaming sword; and as to Jack the fighter, his mind was strictly judicial with regard to trespass. It was not till afterward, when the climax of this abrupt and singular apparition was reached, that my attention was directed to the behavior of my two companions. While I stood perfectly motionless, waiting for some recognition of my appeal, the figure advanced slowly in a direct line from the wall, leaving the shadow, and stopped before me, and not twenty feet away from me. I saw at once that it was somebody I had never seen before. When in the light, without even a weed to obstruct my vision, as soon as he stopped, I called again: "Speak, or I will fire!" I am not naturally of a blood-letting disposition, but somehow or other that threat came from me without any power or will of my mind to arrest it. It was an unmeaning and perhaps a cowardly speech, for he was alone, while I was armed with two powerful dogs, either one of whom would have vanquished him, had I but said the word. Nor had I a pistol to carry out, had I been so rash as to intend it, my foolish demonstration. It was at this period I observed especially the behavior of the dogs. Up to this time they had been quiescent, lying upon the grass in the full enjoyment of its freshness; but now they both got up, and I felt on each side of me the pressure of their bodies. They were evidently frightened, and, by the casual glance I gave them, induced to do so by the sensation of their touch, I saw that they were looking with every symptom of terror at the figure that stood so near us without a motion. And

the figure. It never once turned its head directly toward me, but seemed to fix its look eastward over where the pine-trees broke the clear horizon on the murder-hill. This inert pose was preserved but for a moment; for, as quick as the flash of gunpowder, it wheeled as upon a pivot, and, making one movement, as of a man commencing to step out toward the wall, was gone! To my vision it never crossed the space between where it had stood and the outline of the shade thrown by the trees upon the ground. One step after turning was all I saw, and then it vanished. Can I describe this figure you will ask; and my reply is that I can, but not exactly in such a way as to satisfy the chief's business-like interrogatory. Before I go any farther, I must say that, as I had nothing to do in getting up this apparition, I do not see how any one can poke fun at me simply because I was there to see it. A man sees a star fall; he has no agency in the eccentric transaction, and is he to be ridiculed because there happens to be a tack loose in the celestial carpet whose dropping out he witnesses and tells of, and happens not to be astronomer enough to explain? Here was a moral and physical tack loose somewhere and somehow, and I had struck my vision on its point. What I saw I relate exactly as it happened, and nothing more, though I may be induced to meet the usual objections to the possibility of its occurrence, in a later portion of this narrative. I could, if I felt so inclined, stop my recital and talk by the folio about this affair; but it was a very different matter at the moment when that something, which would not reply to me, stood in the night light, clear and distinct as a marble statue, and cast one glance over toward the hill that held among its gray rocks a stain that would last there forever. But I half promised to describe this figure, this appearance, this apparition, and a few words will answer. It looked like painted air to begin with. An artist, sitting by my side and following my ideas, might render it to the life or death; but he would have to blend his matter-of-fact pencil with the vague vehicles of spiritualistic imagination. In the first place, there was no elaborate toilet; indeed I could not make out the fashion of the garment, taking it for granted that it was draped in the usual costume, being too absorbed by the complex and somewhat agitated train of thought which, commencing with the assumption that it was my friend, and which was suddenly relinquished, leaving me exposed to the rapid transitions of intellectual deductions so singularly called into action and so totally at variance with my habitual mental or nervous equanimity. I felt as a drowning man might feel who, admitting the fact that the water has got the

master of him, lets that primary incident take care of itself, and looks only to some object by whose aid he may relieve himself from the desperate catastrophe. I was occupied more in the effort to recognize a human being in the figure that was before me than in making a tailor's analysis of his apparel. One thing was evident,—he looked dark-gray from head to foot. Body he had, and legs, and arms, and a head; but the face I could not distinctly see, as he turned it from me; but there was an outline such as can be traced in shadows thrown by a dim lamp upon a rough-plastered wall,—and that is all I can say about it. Of course it is unsatisfactory, but I had no means or time for a fuller diagnosis.

XI.

THE TESTS.

The effect left upon me when I found myself alone was not exactly that of alarm, but rather a determination to test, if it might be possible, this appearance or delusion, or whatever it might be; and, instantly turning from the spot, I walked back to the house. The presence of persons in the room, the light, the furniture itself, had an influence to calm whatever of perturbation I was sensible of from the strange interview through which I had so rapidly passed. I debated now in my mind with regard to the test I should apply. Was it a ghost? That was in part the question, but not the entire inquiry; for I could not come all at once to the conclusion that it was an undoubted visitant from the dead man's realm. While pondering over these doubts, an adventure of my youth came vividly back to my recollection, and seemed to offer itself as a means by which I should judge of my present experience; and, thinking it may amuse my reader, I see no reason why I should not add it to my narrative.

A goodly number of years ago, I was a student at a college in the State of Maryland, not far from the town of Gettysburg. From the plateau of the mountain, at the base of which the college was situated, I have been told, the smoke as it actually poured from the guns, not after it floated miles away, was seen during the progress of the great and inexplicable battle that has made the town one of historic importance.

Upon a certain occasion, it being a holiday, I went over to the neighboring village of —, intending to have a free-and-easy time with smuggled cigars,—smoking being a virtue unrecognized by the dignitaries of the college, and forbidden under heavy pains and penalties within the sacred and unfumigated precincts. I had other objects, perhaps, justifiable to youth, and unnecessary to dilate upon now. At all events, I was away from college, and away I remained until the advancing evening warned me that I had somewhat of a walk before I could get back. There were two ways by which I could return,—one by the common county road, and a shorter but more difficult route by a narrow path leading partially over and along the mountain ridge. I chose the latter. So I bade adieu to the village and its

barber, who was our contraband chief in the cigar smuggle, and at whose house I had enjoyed a comfortable but uncollegiate dinner, and with whose pretty daughter (all girls are pretty to college boys) I had taken a precious lesson in flirtation, almost engaging myself to marry her after I had graduated and seen my way clearly to parental acquiescence. Poor barber's daughter! I wonder how many other lads made innocent love to her and vaguely hinted similar magnificent proposals? But away I went up the mountain, under the trees, in and out with the path, by the rocks, by the torrent, and ere I had advanced a mile, the moon (did you ever see a Middle States' moon?) had stolen into the skies. The wind rose gently with the moon, as if it would make soft music for her, and the clouds accompanied her in muslin toilets; and so with the moon and the wind and the misty clouds I pursued my walk, smoking the last cigar of that blissful holiday.

My path led by the church, belonging to the college, half way up the mountain, and afterward by the old graveyard, walled in,—a crumbling and a neglected wall, over which you could step easily into the silent city. Arrived at this graveyard, I stopped and looked down upon the college. The lights were gleaming there; and, upon the fatal theory that a pleasure enjoyed under ban is sweeter than pleasure permitted, I resolved to finish my cigar before I made the final descent. But where could I smoke so near the college and be free from detection? Lingering on the path I might be detected and reported, and that would be fatal. In the graveyard? Who ever ventured there except the dead and the mourners, or a law-breaker? The very place I thought; and so I crossed over the shattered wall, and, selecting an entablature that was a sort of mortuary dining table supported by four brick legs, I stretched myself and fell into that luxurious enjoyment which only a true smoker can realize,—and of that class I was then, and am now.

The moon, by this time, was nearly above me, and so bright that a woman could have threaded her needle by its wonderful effulgence. I had not been many seconds on the table-like slab, before I heard a sound that somewhat startled me; but, after a moment's reflection, I concluded it was the wind moaning round the old church that was at the upper end of the cemetery. Quieting myself with this belief, I pulled away at my cigar, now nearly at its last gasp, when I heard a repetition of the sound; but this time it seemed to proceed directly from underneath the slab! The affair was getting peculiar, and my nervous system was undergoing that singular process so

well expressed by the phrase goose-fleshy; for if the sound did come from under the slab it could not be the wind, for it was not like anything the wind could do with such materials. But while I debated the question, the utterance struck upon my ear again, and this time it was an unmistakable groan, as if human or inhuman lips had given it expression. The goose-flesh arrangement continued to develop itself, but not to such an enormous wrinkle as to prevent my peeping over the side of the stone to see if I could catch a sight of the groan or the groaner. I feel convinced, though I did not test it, that the extraordinary phenomena so often alluded to by novelists did occur, and that my hair did stand on end, when I saw directly under me, out in the moonlight, a battered, withered leg covered by a dingy, mould-soiled piece of cloth, with a boot attached, but such a boot that no human ingenuity of St. Crispinism could repair. The boot looked like the skeleton of a boot, as the pantaloons looked like a skeleton of pantaloons. They were to all intent and purposes supernatural fractures. While I looked, the groaning was repeated, and simultaneously another leg, another piece of mould-stained cloth, another tattered boot was thrown out of the deep shadow and softly placed crosswise over the other, following the example of knight-errantry sculpture. I had stretched myself, supported by my hands, to the edge of the slab, and could see distinctly these movements and appearances; and my mind was so completely divided between the physical results and the naturally suggestive idea of the supernatural, as to leave me in a medium state of amused courage and inherent superstition.

But it was necessary for me to act, and so, without further hesitation, I supported my body on my arms reversed, and made a long leg of it, stretching myself entirely free, of course, from a contact with the mouldy-looking arrangement that protruded into the moonlight. Having established my position at a proper distance of observation, I at first hesitated whether to go away or not,—a vague and not unnatural fear suggesting the idea of flight; a positive but artificial conviction determining me to remain and see the matter out. One of the greatest and best lessons, and for which there should be a professorship established in every college in the country, is the lesson of self-command. Make it at the commencement of your life a speciality, and it will serve you in after years as a guardian of your honor, and sometimes of your life itself. It makes you well behaved, careful of the feelings of others, tolerant and independent, and is the safeguard of a woman's virtue and the potent spear by which truth may be distinguished

from error. By a strong effort I reached the point of self-command, and so my legs were as firmly fixed to the spot, as those limbs of mystery peeping out from the entablature of the tomb. My next act was to catch hold of the feet and pull at them,—pull the whole affair into the light and determine what it was. When I had drawn this moaning body forth, I lifted it by a vigorous effort, and stood it against the tomb. The head fell backward and the moon shone full upon the face. The face was swollen with a livid kind of puffiness, and the eyes closed fast. I placed my hand upon the forehead and felt the moisture, clammy and revolting. The hands fell heavily by the sides, and a tremor ran over and shook the figure as if with palsy, and groans and moans came quick, and as they came I shook the thing by its shoulders; but there was no awakening as yet of the closed orbs and apparently dead brain. I worried myself no longer, but drew the loathsome figure away from the grave-stone and commenced an advance toward the broken wall. It moved heavily, but at last we reached the boundary, and with difficulty got over it. The mass was passive; I was very positive. I went down the mountain, passed the college, and, reaching a cottage, I rapped upon the door. A woman opened it, and, giving my ghost a push, he staggered or fell into her arms, or upon the floor, I know not which, and this dingy spectre was no more nor less than the hard-drinking husband of one of the college outside servants. Here, then, was the test case which came back to me, with all its vivid incidents and extraordinary suggestions, to help me out of my present dilemma? In the adventure of my youth there was at first a large supply of the ghostly element, and, had I fled the investigation, perhaps nothing would have disabused my mind of its supernatural character. The man would in all probability have been left until early morning in undisturbed possession of his unique apartment, and, when restored to his senses, would have been the very last to initiate a revelation. It would have been a confession fraught with serious consequences,—in the first place with regard to his situation under the college,—and it would not have contributed largely to his domestic felicity. To peach on me would have been to implicate himself, and, as drunkenness is morally a worse crime than the smoking of a cigar, he would have been the first to have suffered decapitation. It was my self-possession alone that turned one of the most reliable ghost incidents into a tale of beastly absurdity. If I was so near seeing a ghost's legs on that night, which turned out to be no ghost's legs at all, why might there not be some chance of my visitor on the brow of the

hill to-night turning out to be some vagrant more wildly drunk than the drunken college-phantom?

XII.

TESTS.

I again left the house, having tarried there not over ten minutes, resolved to revisit the locality where the puzzle had presented itself. After calling the dogs,—for I wished them to be with me to make the test complete, and also to observe their conduct,—I searched in every likely place to find out if my friend had not returned; for I still had a vague suspicion running in my head, that after all he might possibly have succeeded in some unaccountable way, in enveloping me in the maze of a ghostly manifestation. But I searched for him in vain; and, to settle all doubt relative to his agency in the affair, I will state that he did not return home that night until ten o'clock or after, driving by the road leading through Jamaica Plain.

I then went down the garden road, and stood upon the very spot I had previously occupied. As I said before, I wished to see how the dogs would act should the figure make its appearance; and even before I reached my former position I was struck by the reluctant manner in which they followed me,—but I managed to get them on, and so there we three were; but where was that eccentric fourth?

He was not there. Some people will say I had been controlled by the solemn influences of the night and the ghastly associations blended with the scene and all its gloomy neighborhood, and consequently was in a very fit condition to receive a demonstration and accept it as supernatural; but I will at all times maintain that when I first went down that garden walk that night, and saw the form that I took to be that of my friend, I was, as I have previously most minutely and accurately explained, not in that spiritualistic, sympathetic condition. But on the second visit I confess that I was in a better temperament to receive the influences of night and scene and associations, and to which you may add the incident which gives such a weird aspect to my narrative. In the first, my condition was natural and eminently composed, and yet I had the vision; in the second, with all my nerves stretched in expectancy, I saw nothing. Now, how was that? I stood still as a living man can stand, and fixed my eyes upon the wall where the figure had first appeared; but all was moveless and silent. The old wall and

the shadows looked as they did before. I turned quick as thought, and tried to surprise any faint glimpse of anything that might have come to the spot where the apparition had stopped in the interval of my withdrawn attention; but there was nothing but the short grass backed by the dark wood where the deeds of blood had been perpetrated. I even looked to see if anything was lying down to avoid my scrutiny, walked over to the spot, and then in a straight line to the wall, supposing it was possible I might find some trace of a presence. I found nothing.

I was therefore satisfied as far as this test was carried; but still I was not content. A strange desire, which I possibly did not attempt to check, had taken possession of me to carry my investigation farther; but it was a wild, and, all things considered, a fearful experiment; at least I so viewed it when it was first suggested to my mind. It must be understood that I only submitted even to the contemplation of this ultimate and extraordinary test after I had determined that what I had seen was not a visual delusion or in fact a human being. A sense of profound conviction seized me and impelled me to admit that something had occurred to my experience beyond my ability to reconcile by the ordinary rules of explanation. In fine, I for the first time during the progress of these transactions suddenly connected the mystery with the murders. I had given common sense and resolute examination a fair chance to account for that abrupt whirl, that sudden vanishing, that terror of the dogs, their failure to recognize their master, or to attack the stranger,—either of which they would have done under ordinary circumstances,—and now I had no power to resist the conclusion that was so powerfully forced upon me. I pretend to no peculiar bravery, though not entirely destitute of that quality, shared with man by the rat-terrier and the rat himself, having enough of it for all the needs and purposes of a very good-natured and non-aggressive man; and the chief feature of my courage is, my not having a fear of myself; that is, I am not backward in entertaining myself with proposals to undertake matters which, to some other men, of abler judgment, might appear a little too venturesome; and here I was about to attempt a task that possibly only an animal should engage in, knowing nothing of human mysteries, or a pauper, for a reward; and even the pauper I think would have debated longer than I did whether he would not rather steal the recompense, or starve a little longer. It was no less a thing than to visit the spot off in those gloomy woods where the body of the girl was found lying among the rocks.

This fancy was of a twofold character. One was, that since I was in for testing, I would go over there and test my nerves; the other was an idea that, since I had been launched into the regions of the marvellous, possibly it might be made manifest to me there in those deep seclusions, on that spot,—a revelation that would lift the veil of mystery that enshrouded the fate of the two unfortunates, and also unravel the difficult maze in which I had been involved. Perhaps I would see that figure there,—that figure a parent, or relative of the girl, who had come to me that night, impressing me to the interview. I could not but think of the spiritualistic theory of the sympathies between the living and the dead,—the theory indeed of all Christian, and, for that matter, of all heathen sects, and there, and nowhere else, I might have revealed to me the name of the man who had done those hideous acts. Surely, I was in a singular predicament. I had either seen a ghost, or I had not, and I felt unwilling to let things remain in the condition of unsettled doubt, not caring for the rest of my life to be the prosy relator of a ghost story, which my listener could accuse me of having left unsettled and unfinished for the want of nerve to examine to its climax. Determined upon putting my duplex test into execution, I returned to the house to inform my friends that I was going out for a stroll,—not an unusual thing with me,—and to make some little arrangement that I thought personally needful in case of untoward accidents; for, independent of the peculiar intention I was about to fulfil, there were reasons why I should not go unprepared for physical contingencies.

The whole country, it will be remembered, was in a very disorganized state,—many people thrown out of employment, and others returned from scenes of strife and bloodshed, with an education habituated to deeds of violence. So I armed myself with a companion charged to the lips with a counteracting but defensive species of explosive violence,—a thing that could speak seven times, and always with effect if the delivery was good.

On the theory of testing my nerves, in connection with the ghost theory, I at once resolved to dispense with the dogs, for their presence would have been companionship and a reliance apart from my individuality. My pistol was not taken for the ghosts, but for ghost-makers. Now that I reflect upon it all in my cooler moments, I must frankly admit that, after what had happened, this trip had something of the fearful in it, which my placid reader will not have the heart to deny, and nothing would induce me to

repeat it, unless there were motives of a higher grade than those which ruled me then. It was, in fact, an enterprise totally at variance with common sense and common personal convenience and comfort. It was now about nine o'clock. No change had occurred in the shape of the night,—that is, no clouds had culminated in the skies, and yet no moon had been conjured up by astronomy, or by lovers' incantations. It was a lonely walk down the hill, over the very spot where my silent visitor had so lately stood to look at these very woods,—that very spot to which my steps were now directed. Darker it was down in the valley, with the hill to my back and the great mass of foliage apparently near enough for me to touch; but on I went, giving no time for reconsideration, on to the fence which I crossed, and then I was one of the black things in the intense gloom of the forest.

Not a sound but the crackling of dead branches under my feet in the pathway,—sounds that I felt might send the notice of my approach to whatever was waiting for me by the cross and the immortelle on the murder-rock. Though the broken branches were sentinelling my advent, I kept on, with a cold shiver now and then quivering all over me, but never for a moment going deeper than the skin. Brain and heart as yet were true to their purpose of folly, that seemed like madness to me then. It did not take me long to reach the objective point of my journey. I have described the spot in another part of this narrative, and therefore will not repeat its topographical characteristics; suffice to say that it was somewhat different in sentiment than when I had looked upon it in the sunshine. Then I had seen a visitor sitting quietly and unconcerned on the ridge of the rock, looking down, with a cigar between his lips, at the spot—always a thrilling sight—where the girl had fallen; and I had seen young girls munching sandwiches around the scene, and jabbering of the massacre of one of their mates; but now, with nothing there but the night and the spirit of the event, the weird-looking trees with their limbs reaching hither and thither in such a way as to make me feel that I was beneath the dome of an iron-barred prison-room. I hold it to be utterly impossible for any man, unless he is brutalized and of a sympathetic nature no higher than a quadruped, to be alone in such a place, with such a preface as it had been my fate to meet with, and not experience an accelerated throb of his pulse. I do not say that he is necessarily bound to be frightened, but something so near akin to it that only our self-conceit prompts us to draw the line of difference.

I was there to submit myself to one test, and apply the other to what I had previously seen. The one I was already undergoing; for it may readily be believed that an immense amount of subtle pressure was placed upon me. The accumulated proofs of a lifetime, as to the existence of unearthly presences and imperfectly disproved legends of ghostly visitations and adventures, bore down upon me with the wizard night and spectral forms of trees. And when I placed myself exactly on the blood-stained spot, I looked around with the certainty of being confronted by the apparition whose existence I was there to determine. Now, thought I, is the opportunity,—this the place for a revelation. What other man will ever come again with so foolhardy a brain and give the witnesses or the victim a chance so appropriate and so melodramatic? If any one does venture upon the trial, to a scene so fresh with gory associations, from my soul I pity him, and would blame; but this species of curiosity is not generally diffused throughout society. But I was there and awaited whatever issue might transpire. I was doubtless in a sublimated condition of rapport, as the mediumistic philosophers term it; a human instrument of a thousand strings, that the feeblest ghost might play upon with ever so withered a hand. But none came to inform or frighten me, and not a sound other than the low clicking of the wood insects broke the magic ring of silence that closed in with such profundity of pathos this terrible situation. To attempt to go away, I found required more nerve than to get there; for now I must turn my back and place myself in the traditional position in which cowardice is said to place its victims; but, with the cold creepings renewed with double energy, I turned and walked with an excited composure away from the spot, down the hill, through the gateway that opens eastward into the Dedham road, and then, with half a dozen sighs of relief, straight home.

“Can you recognize that man again?” from the chief, is always sounding in my ear. What man? Did I not go to the place where he should have met me, if he was in any way witness to that murder? Sometimes I think it was the man himself, but not in the flesh. If in the flesh, he never would have come so near the scene of his hideous mischief; if in the spirit, then he had committed suicide, or died of the disease of terror, and was wandering in the accomplishment of a curse and an expiation. Who knows but what it may be so, and who can say it is not so, any more than I can assert it is so? Or was it the father, who, since I wrote the description above, I have heard was no longer living? If it was the father’s spirit, then I have something to

say about that matter; and when I said that I could recognize the man, I meant I might be able to do so if there is a photograph of him that I could get at. Close and open your eyes quickly while looking at a person passing by your window, and you will have some idea of the view I had of the profile of this vision. I have seen in official possession, filed away among the other papers appertaining to this case, something that evinced that this dead father was taking active interest in the search after the murderer. I am not at liberty to recite the mode of that interest, nor am I called upon by any logical process to affirm that he does take an interest, or to deny that he does. I only know that there are similar circumstances connected with this phase of the subject, that a very large class of the community would attach importance to, but all involved in such a labyrinth of mystery as to defy positive recognition and the ordinary tests of evidence.

Assume as a fact that a spirit, taking to itself the form of a man, had appeared to me, there at once grows out of that admission this other question: Why should so extraordinary a circumstance, such a miracle, in fact, have been developed? For what purpose was that spirit there? Denying, as I do, that it would have been a miracle, I take up the question and attempt my reply. In the first place, I am no sectarian; least of all am I a spiritualist; and if I am anything of a creed man,—which the Lord grant I am!—I am of a church that is founded on the system of marvels, as indeed, for that matter, are all churches, Christian or Pagan. The Saviour of mankind, let me with all reverence say, is admitted to have been duplex in character,—mortal for our sympathies, divine for our worship. If he suffered death,—which some doubt he did, but only the semblance of death,—his spirit was no more existent after his execution than before it, and consequently he had power to rise from the sepulchre where they had laid him and appear to the soldiers and to the holy women. That he did appear we have the evidence of the great apostles and the contemporary legends of the Roman narrators. Indeed, it is not only asserted that he was manifest after death, but that ghosts walked the streets of Jerusalem, and when the veil of the temple was rent, the graves gave up their dead. These were the phenomena of a sublime epoch,—an epoch that in the death of a God was grander and more inexplicable than the incident of the earth's formation, and that of the stars and skies that are over it. All events have their purposes, and I can see the purpose here that should evoke these wonders. His mission had reached the point where the spiritual manifestations must

overshadow the recollections of his corporeal existence, and prove to the world, by tangible exhibition, that beyond the grave there was a life. The Scriptures teem with the legends of spirits,—of ghosts, if you like that word better,—and men of all the known wisdom of those days believed in them, because they seemed to have seen them. Why should they have been prevalent then, and not now? Who can dare answer that question, or dare deny, with proof to back the denial, that such things never did exist, or, existing, appear to human vision? As well tell me that the same vegetables did not have life then as now, the same qualities of sand and superficial soil and rocks; and indeed have not certain plants, that were for centuries lost to human cultivation, been revived? Nothing is lost, nothing changes, though we call reproduction change, and flatter ourselves that we have spoken a great philosophy. Why is the world full of ghost-stories outside of the Scriptures? Because ghost-stories have been veritable facts,—these lay ghost-stories travelling alongside of the clerical ghost-stories of the Inspired Book, and substantiating to the common appreciation of all mankind the veritableness of the Bible. Who knows but that they are the vehicles by which Supreme Wisdom conveys to the intelligence of the unwise and the unlettered, the solemn truth of a hereafter? Who so arrogant in his wisdom as to be able to rise to the proof that it may not be so? The atrocity of self-conceit is more terrible than the atrocity of ignorance; the one is an active crime, the other a passive submission. The impossible means the possible. It is a favorite dogma with the utilitarian doctors, that nothing is impossible to the genius of man. Is there anything impossible to our Creator, other than the impossibility of making a mistake? If man invents a machine which defies all the previous laws, or theories supposed to be laws because nothing had happened to prove that they were not laws, are we to reject it on that account, and because it happens to be beyond our uneducated and unprepared capacity? Is the Creator of all to be limited and only his creature unlimited? How often, in the midst of a great accident, has not some mind suggested a redress totally at variance with the rules by which the accident was produced, creating a surprise to usual circumstances, and checking the catastrophe before it could recover its equanimity and prearranged and understood mode of conduct! Cannot the Maker interpose at his pleasure such surprises? But we will be told that he never interrupts the harmonious action of his great rules. Where do we find these rules so as to enable us to say when they are infringed or deviated from? How long have we been in

possession of the habits of the beaver and the bee? and yet they were a part of his great rules and system of order. Every day science is bringing new lights to bear upon old ant-hills as well as upon old mountains, and the shadow of a fern-leaf on a rock, the ghost of a fish-bone in a strata are sufficient for a theory on the momentous and mysterious history of our own illustrious race. If scattered bones of a mammoth, when reunited by the wire-work of a naturalist, are evidences of Noah's or Deucalion's flood, where are we to draw the line upon circumstantial evidence and testimony in substantiation of other facts and possibilities?

There are more tangible proofs of the existence of ghosts than there are of the existence of Noah's ark. The hush of the night, the solitude of forests, the loneliness of limitless prairies suggest, to the most unimaginative mind something more than the physical sense of desertion and isolation; and yet that is no proof that a mystic band of weird spirits are with you in those dreary hours and wanderings; but whatever is suggested proceeds from a thing that is able to suggest, and whatever the mind grapples with of the material or the immaterial exists in some form or other, intangible, but no less existent. The opponents of the theory of the existence of ghosts, and their power to appear, use one word that conveys all their logic, and that word is the contemptuous vulgarism, Bosh! And then they will advance with weaker argument the logic of bold contradiction, as if they had just returned from a trip into the regions of the future and an examination of the powers and rules and intents of the Providence, with an exact catalogue of his attributes and short-hand notes to be written out at their leisure, of all he has done, is doing, and is going to do. Faraday could analyze vapor, but, with all his retorts and crucibles and chemicals, he never could weigh a scintilla of a human thought. Such men grasp vapor in their hand, and will tell you of what it is composed; and they tell you truly, and we, though consciously ignorant, have no foothold for a doubt. The preacher rises in his pulpit, and, from his sectarian books, and more sectarian training, interprets to you the sublimest dogmas of the Apocalypse; and woe to the member of his flock who raises an impious question against his dictatorial assertions. But if your neighbor,—near whom you have been living all your life, whose word stands pre-eminent in all matters of business, into whose care you would place your wife or your daughter, and to whose honor you would leave it to execute your last will and testament, in behalf of the loved ones,—was to tell you that he had seen a ghost, and calmly relate the incident

with the proofs and the tests, you would be very likely to laugh in his face, and tell the next person you met that you were afraid neighbor so-and-so was a little weak in the upper story, or was telling what was not true.

The elegant dictators of theory speak of the belief in the existence of ghosts as the “vulgar belief in ghosts and goblins,” and get rid of it in that summary manner. But the very fact that it is vulgar, as they term it, is a strong point against them. If we could get the Scriptures pure and exempt from mixed and muddled interpretations, free from the garbage of a host of foreign lingual transformations, and in its original “Vulgate,” we should not have the world troubled with more creeds than they can invent gods to preside over, or devils to operate in. The word vulgar is not to be used always as inclusive of the “low-born and the uneducated.” The vulgar in this country believe in the imperialism of the ballot-box; in Russia and Prussia and England, and elsewhere, of monarchies, in the divine right of kings; and demagogues in all realms, like dogmatists of all creeds, have no faith at all, but use the belief of the masses for their own purposes. With the majority of mankind exists the supreme attribute of common sense, and yet they all, more or less, believe in the existence of ghosts. The hair-splitters of theology and other ethics, for sake of discipline, would drive the old stage-coach where the people would rush the locomotive; and as in the beginning, fishermen and carpenters were the recipients of divine truths, or the media of revelations, so now, while abstract and abstruse sciences occupy the minds of the enlighteners, the plain truths of Christian doctrine are held with other beliefs, relatively necessary to our nature, in the legendary, gossiping, and enduring belief of the masses.

It will be asked, For what purpose do your ghosts appear? To accomplish what end that human intelligence cannot effect? I say, again turn back to your Bible, and you will have your questions answered.

There are other needs now that did not then exist. Society is not the same; the ordinary laws of justice, of health, of life itself, are not the same. There are a thousand more appliances now, than there were, by which human life can be destroyed or preserved,—gunpowder, steam, machinery, with their countless adjuncts of power, on one side, and chemistry, with ether, and other discoveries, on the other. And as science becomes the assistant to the conveniences of mankind, in the same ratio it becomes his slayer. Events transpire now that were not dreamed of in former days, because of the

increased forces that act upon latent ideas. Sixty, fifty, forty years ago, though Death had his ample harvest, he had not the immense scythes of steamboats and railroads with which to do his work of destruction; and now and then we have isolated facts published, with all the details of authenticity, of dreams that warned a voyager from the water or a traveller from the cars, when afterwards it has proved that disaster befell both modes of travel. The remedy is to the need, and who can say that there have not been innumerable warnings, by visitations and dreams, of which the public never has any account, owing to the seclusion of the parties, or their natural reticence and unwillingness to have their stories made the subject of a paragraph and a sneer?

There are purposes in the Almighty wisdom which we cannot fathom, and religion herself, speaking from the misty summits of theological controversy, cries to her votaries to have faith where they cannot have comprehension; or, in other words, to believe without understanding. Do I, a ghost-seer, ask for more?

You ask, for what purpose did this ghost—if ghost it was—cross your path? I could retort, and ask why that man—if it was a man—crossed my path? But I affirm that there was a purpose, and though I did not see it then, I may see it soon. Who can tell but what this revival of that mysterious horror may not lead to renewed activity in the police department? Who knows but it may be read by the murderer, and, awakening in his breast the smouldering embers of remorse, make him do those eccentric things which lead vigilance to observe and assist in the detection of the guilty? I never would have written this narrative if that misty figure had not confronted me on that night, and perhaps it may have been his intention to excite in me the idea of writing out these transactions, and thus awakening the slumbering or pausing authorities to a more active investigation.

Why did he select me, if I was not appropriate to his purpose? And I will say now, and with all truth, that, from that time to this moment, I have been haunted with a vague urging to write this work, and give it to the public; and now that I have done so, it may so happen that I will see that thing once more coming to assure me, in some way consistent with his condition, that his intention, so far as I was concerned as an agent, is accomplished. I shall not be surprised if it should occur.

XIII.

THE DOCTOR'S STORY.

Let me relate, as briefly as I can, a very singular incident that happened some years ago in Baltimore. The narrator was a man with whom I had been brought up from youth to manhood. His father was my father's family physician, a doctor of high standing; and the son who told and acted a part in the story was then a practising physician in Washington, where he still practises. A party of us were together at the house of his father, and the ghost subject was introduced. My friend argued against their existence, as most doctors do; but in the midst of our conversation he said that, notwithstanding his theory, he must tell us of a remarkable occurrence that happened within his own personal experience.

Two years previously he had occupied the professor's chair of Practical Anatomy (I believe that is the phrase) in the Medical College of Baltimore, though then not more than twenty-three or four years of age. His remarkable skill, systematized by study in the famous medical schools of Paris, had justified his selection for the important post. During this period, or some time before my friend accepted the professorship, the mob had broken into the medical college, actuated by a sentiment of horror at the idea of the bodies of their dead friends being stolen from the grave and placed under the knife, and subjected the faculty and students to great personal peril. The riot being quelled, it was determined to make such arrangements as would entirely elude the suspicions of the people.

For this purpose the upper portion of the building was converted into a large dissecting-room, with the windows hermetically sealed, so that no light could be perceived from the outside, and consequently lead to a renewal of an attack. Thus at night the faculty was secure from observation, and whatever of light was needed during the day came through glass inserted in the roof. To add to the security, a private stairway was arranged, so that if the mob did break in by the only publicly known entrance, the students and professors would be enabled to escape. The egress to this private stairway from the lecture-room was by a door, the bolt of which, shooting into a socket, was within the room, and could not be moved from

without. This private escape-door was at the other end of the dissecting-room. And this is my friend's story:—

He had made arrangements with the janitor of the medical college, who was also a sexton, to have the body of a female on the dissecting-table on a certain night, as he wanted to make some specific studies for his lecture of the next day. On the evening when the body was to be ready for him, he had accepted an invitation to a small party, at the house of one of the professors, and thither he went, pre-arranging with one of the students to leave at eleven o'clock, and go together to accomplish his examination. At the appointed hour he made a sign to his companion, and they withdrew. Arriving at the college, he entered by his pass-key, found a couple of candles on the table in the lower hall, ascended the usual stairway, and, arriving at the door of the lecture-room at the top of the building, stopped for a moment to hang up their cloaks and hats. Then he applied the key to the lock, and entered with the candles lit, of course. A deep gloom pervaded the dissecting-room,—a gloom that was increased by the feeble light of the two candles, and upon the table lay, under the fearful cloth, the subject for the night's work.

Without any other thought in their minds save the plain matter-of-fact idea of work, they advanced to the dissecting-board,—the doctor towards the head of the corpse, the student passing round to the other side. As the latter was in the act of turning, he lifted his candle and exclaimed, "Doctor, who is that?" pointing at the same time toward the centre of the room.

"I do not know," replied the doctor, thinking the question applied to the body before him; but no sooner had he raised his eyes than he was struck by the attitude of his friend. He was holding the candle above his head and looking away from the table, and the doctor, following the direction of his gaze, discovered the figure of a man standing some twelve or fifteen feet distant. My friend said that his only impression was that they were in for a row; concluding that the mob had found out the secret stairway, and got into the hall for the purpose of breaking up the dissecting operations. With this idea he turned round the table, and, as he advanced toward the figure, exclaimed, "Who are you? What do you want here?" In his advance movement he was joined by the student, neither for an instant having the idea of a supernatural visitation in their minds. As quickly as they pushed forward, as rapidly did the figure retreat until it reached the door leading to

the head of the stairway, when it disappeared. Supposing that the man had passed out as he had come in, they rushed to the door to follow, but they found the door fastened and the bolt shot within the staple. With difficulty they forced it back, for it had never been used since it was put on,—no occasion requiring it,—and then they descended the steps to the outer doorway, which they found closed, and from *within*.

Puzzled by these mysteries, they reascended to the room, passed through, and immediately descended to arouse the janitor, and see if he could give any clue to the adventure. The janitor inquired of them if they could describe the appearance. Yes; and they did so; for they had had a full and accurate view of his face, of his dress, and of his height. “Then,” said the janitor, “it was a ghost. That man was the husband of the woman you had upon the table. I buried them both, and knew them well, and he answers exactly to your description.”

The doctor, when questioned by us, said the figure was that of a tall man, dressed in ordinary clothes (I forget, now, whether he gave us a full description or not, but rather think he did not), with a very severe and stern face, and kept his eyes fixed upon the corpse, one hand upraised and pointing to it, conveying the impression to his mind of an order not to touch it,—a gesture of rebuke, or a motion to forbid.

The doctor and his friend went back to the vestibule of the dissecting-room, resumed their outer-garments, and retired. The janitor fulfilled the doctor’s order, which was to remove and rebury the body, and find him the body of a woman whose husband would not interfere with his professional occupations.

Now, here is a true ghost story, if there ever was one. *Two persons* saw the apparition, and a third party verified it. The moral is plain enough. The husband was there to prevent the disgusting mutilation of his wife’s body, and his purpose was accomplished.

The doctor said that nothing would have induced him to lay his hands upon that woman’s form when he remembered the appealing look of his extraordinary visitor. It was not personal fear or vulgar superstition, but a higher motive; for inasmuch as no Christian gentlemen would touch with unholy motive the form of a living wife in the presence of a living husband, so he could not disturb the sanctity of her spectral modesty before the face

of her suppliant, dead husband. To those who accept the story of the apparition, the logic of the motive must be evident; and if so in this case, why not in all others? Or it may be as it is in life. We meet our acquaintances every day on the street; they pass us without seeing us, or without our seeing them; and yet how absurd it would be to deny their being on the street, walking straight on, absorbed beyond recognition, simply because they did not stop and explain to us the motive that brought them there! Ghosts, in like manner, may cross the clown's staring vision or the philosopher's calmer sight, and, because they do not pause and prattle of their object and tell them the motive of their appearance, are we to conclude, as a logical theory demonstrated, that that is a good reason to conclude they were not there at all? Must all facts be denied until the motives are discovered? Is a negative so powerful as to overwhelm an affirmative? If so, the plea of not guilty offered by a criminal should be enough to justify his discharge, despite of circumstantial evidence strong enough to hang him or half a hundred like him.

As I stood that night out there in the fatal wood, and thought over the murder and the murderer, I conceived a plan of punishment by which, alone, I thought he could appease the outraged sense of human tenderness for things so young as he had slaughtered.

XIV.

MY PLAN OF PUNISHMENT.

And this is my plan:

Chain him to the rock on which he took her life,—one chain to each wrist, one chain to each ankle, and an iron hoop locked around his waist, and this, too, fastened to the rock. Lay him on the spot where she was found. Then leave him to himself and to the scenery which he has disfigured so fearfully; but watch that no demon out of the Davenport or Eddy witchcraft or mancraft boxes help him to unloose those shackles. Lay him with his face to the avenging skies, and place food within his reach, but so arrange it that it rests only on the spots over which the red current of her life had ebbed. Let him alone with the night, and the night will give him such a tangled and convulsed spasm of horror as will make his very soul shriek aloud for two almost impossible things, yet awhile, death or the Lord's pardon. And there he should remain until every hair of his head had become white, and every black spot of his soul livid. Perhaps the spirit that confronted me in silence and in peace might come to him and watch him,—watch him till the dawn broke and the eyes of the bright heavens took its place to look at him. And after that let the authorities handle him as they pleased.

The reader will observe that in this project of mine I follow out the classic ideas of the most elegant peoples and refined poets of the world, who insisted before all things else that the dramatic unities should be attended to. In that respect my plan would be without a flaw.

And now, if I am asked for my theory of the murders, my answer would be, that it might not be politic to give it publicity. This much, however, I will say, reserving the more probable theory for future emergencies. There is a link wanting at this time that must be found before any progress can be made to a conclusive judgment. The children left their temporary home intending to return in time for the boy to attend his afternoon school. Their objective point, as I said before, was May's wood. This question then arises: What occurred to make the girl, the senior, change her mind and go farther away from home,—to Bussey's wood? Going there would change her

original programme, relative to the boy. Did some one meet them as if by accident,—*some one whom they knew*,—and did that person induce her to continue to Bussey's wood? Were there any evidences that they stopped at all at May's wood? But what inducement could he use to get her to Bussey's wood? The mother might have been the inducement. They knew she was employed at Quincy, nearer to Bussey's than to May's wood. They might have been told that she would meet them at the former, and it would be a pleasant surprise. Another question presents itself: What could have been the motive to get her to secluded, distant Bussey? I answer, self-defence. Self-defence against two children? Yes. The girl was an intelligent, observant girl, and she may have been cognizant of some crime, the revelation of which would have brought ruin and punishment upon the perpetrator; or the perpetrator might, in his consciousness of the possibility of her having discovered him, come to the resolution to dispose forever of any chance of her being a witness against him. They were poor children, and had only money enough to go and come from May's wood; and yet that money was found upon the girl. Consequently, she had not been at any expense in getting to Bussey's wood by the cars. *The murderer paid their fare!* After reaching the thick shades around the rock, and giving her time to become confident of his integrity and friendship,—so much so as to be sufficiently at ease to commence the weaving of leaf chaplets, waiting the promised interview with her mother,—he sent the boy down to the brook for water, and where he was subsequently found. Then he turned upon the girl; for if the boy had been near by, his cries could not have failed to arouse assistance, for there were men working within three hundred yards of the place where her body was discovered. He must have brought about a separation between the children, and at that spot; for he could not have murdered them together, and there, in that broad sunlight, with the swirl of the mower's scythes down in the near meadow evident to his ear, carried the body of the boy to the brook at the foot of the hill, and thrown it among the alders. He killed the girl as soon as the boy was out of sight, and then he followed the little fellow to the place where he had sent him, and slaughtered him in the gloom of those thick bushes.

Now, who was that man whom she would have exposed? With whose acts could she have by locality and association of daily life become acquainted? Was he from Lynn, or its vicinity,—where she had been living before she came to Boston? Or was the discovery, or the imagined

discovery, of a crime made in Boston, and of some one living in Boston? The girl was simply murdered,—no duplex crime,—attacked while she was sitting with leaves and wreaths in her lap, and the first blows were delivered upon her back and sides, and after that in front and in great confusion. The boy was killed, not because he saw the murder done upon his sister, but because he could have told who it was that accompanied them from Boston, or joined them at May's wood, where they were expected, or anywhere along the first part of that terrible journey. There was no other motive for his death. If the man had not been seen by the boy, and known personally to the boy, he would have been alive now. Consequently it was some one who was intimate with those children and who could not allow the boy to live any more than he could allow the girl to live. It was a double self-defence.

Then who was that man? I think he lives; I think that he walks these streets daily. I think that some of us at some time or other have sat beside him in the cars going to and fro the city roads. I think that now, as I sit here writing, he is sitting somewhere hereabouts with his face dropped over upon his clenched hands, looking at that dark rock out there in the woods and wondering if he will yet reach the end of his life by the common methods of disease. I think that he often passes by the police station, with a frightened look in his eyes, and turns a corner quickly when one of the big police guards stalks like a blue-coated and silver-plated Nemesis toward him. I see him, in my mind's eye, when he meets a girl and boy upon the sidewalk,—how he stares at them with a fixed gaze, wondering how those two whom he killed out yonder, in the old woods, are looking now!—and, when this book is advertised, I can watch him wondering what it is like; and then I trace him in his stealthy and frightened step to the bookstore to buy it; and, when he turns these leaves and comes to this sentence, I hear him curse me, and know that he would like to have his hand upon my throat for recalling the memory of his deed. But I tell him that he will not escape. He may pretend to pray when others pray, to hide his wicked past in the garb of piety; he may mutter his wrath on all of us who seek him for his punishment; he may fly now the advancing steps of justice: but, as he flies, the feet of justice may become inactive, while it sends over every railroad and steamboat line of travel, by every wire that vibrates to all the remotest places of retreat, the command of his arrest. Wherever he is now, and wherever he may be then, he is doomed; and at this instant he knows it and feels it so in every fibre of his accursed carcass, even to those blood-stained

hands beneath whose nails there yet remains the red record of his crime. I have given one theory, without in the least asserting it to be the correct one; but it is as good a theory as the public can get hold of outside of that mysterious room in the City Hall wherein the tall chief of police weaves his webs.

There being nothing else but murder in the girl's death, we must seek for some motive that could have driven that man to so terrible a necessity. What other than the one I have suggested? Was it monomania for human blood? That could have been gratified among a denser population than he would be likely to find in Bussey's wood. And monomania of that kind is not common, nor is it of sudden growth, striking and slaking but once. It seeks its victim anywhere, without plot and without care of consequences, anywhere and everywhere. It is a madness that has no fear and is destitute of prudence. But here was deliberate, deep-plotted murder. It required skill to induce the girl to go farther away from home and her pledged duty to her brother. The filial sense was invoked as paramount to the fraternal. It required skill to separate the children. It was done. Does all that look as if the man was crazed for blood, or blind by drink? I think there was neither here. I cannot give my other theory; for, if it did not detect in this case, it might suggest an excellent method of repeating just such another crime, should any such be in contemplation. The enemy of society and law studies the tactics of justice, and frequently the plan of detection, if penetrated by the culprit, becomes his surest chart of escape. There may, after all,—but I don't think so,—have been two persons engaged in this series of murders; and in that light read the short recital that follows, and perhaps, when the mystery shall be resolved by judicial precision, you may turn back to this singular incident and compare it with the concluding scenes of the catastrophes I have been treating of. If truth be stranger than fiction, then the marvels of the veritable make larger drafts upon our credulity than the fabrications of the imaginist, and there can be no harm done if we prepare ourselves for revelations that in time may be made to us, and whose mysticism, enlightened by the practical test of law, will stand forever in the dry tomes of jurisprudence, subduing the impertinence of our dogmatical self-conceit, and establishing the fact that truth is a principle that can traverse the air, as well as walk arm in arm with us in our daily habits. This is the incident.

Dr. Binn relates in his book, published some years ago, the following:—

“A young and beautiful quadroon girl named Duncan, and residing in Jamaica, West Indies, was murdered in a retired spot *a few paces from the public highway*. [Such was the case in the murder of Isabella Joyce.] Upon discovery of the deed, and investigation by the coroner, a reward, amounting to a large sum of money [similar in the Joyce case], was offered for the detection of the guilty party, but without avail. A year passed over with no light from the judicial lantern illumining the black mystery of the deed, and the case was in process of lapsing into oblivion, when two negroes named Pendrill and Chitty were arrested for some minor thefts and lodged in prison. One was placed in the Kingston penitentiary and the other in Falmouth jail. The distance between these two places was eighty miles. It must be borne in mind that these two men were ignorant of their mutual arrest and confinement, though as it turned out afterward were well acquainted with each other. In the course of their imprisonment they became restless and talked in their sleep, and then conversations were addressed to a young girl who, it would seem, stood by and upbraided them with her murder. They would then entreat her to go away. This happened so frequently as to lead to inquiries which resulted in the conviction of those two haunted men, of the murder that had so long baffled the detection of justice.

XV.

THE CHILDREN.

In a court of justice, if I was put upon my oath, I could not swear that it was a ghost that I saw when I stood at the end of the garden on that luminous night; nor would I swear that it was a man with his vitality in force; but I would swear that I saw something that looked like a man, but might have been a ghost. It acted as if it might have been either,—but if a man, like a crazy one, and who had a charm to subdue, upon the instant and without effort, the temper of two severe watch-dogs, one a mastiff, the other a bull, and also to suspend for more than a second my power of vision.

After I had finished writing my narrative, and thought that I had nothing further to do in this business besides giving my manuscript into the hands of the printer, I became possessed of two photographs kindly lent to my curiosity by the chief of police. They are the portraits of Isabella and John Joyce. My first idea was to have them multiplied and affixed somewhere in my pages, but then I thought of the illustrated papers with their abominable attempts to illustrate by the pencil every spasm to which human nature is incident, and was stopped at once from that design.

The face of the girl is bright, expressive, and, in a degree, pretty. Had she lived to womanhood she might have grown into what is called a *fine* woman. The features are large and regular, the eyes full of vivacity and good temper, the nose prominent and well shaped, the mouth pleasant, and indicative of resolution. Altogether the girl had a generous and loving kind of lookout, and not rare in the species at her budding and buoyant age. She looks like a child beginning to see the vague outline of the sea on which she must voyage with the rest, and not at all having such quick destruction in her thoughts, as came to her ere she heard the breakers of human experience sobbing on the shore. She was not too young to die, but too young to be slaughtered. The boy's face is that of a child; but a bright and reflective little fellow, with a large development of brain, and, by the extreme innocence of his expression, casting a deeper shadow of crime upon the wretch who took away his life. Taking the photograph as a test, he seems to be about eight years old and no more, and with such a face that it must have

been a sad thing for those who found him, to look upon with the mask of murder stamped upon it.

I have also seen a bundle of papers, written over in large, straggling chirography, and said to be communications of spirits, through mediums, upon the topic of the murders. There is one-half page written, so those say,—his wife, for instance,—who knew his “hand of write,” by the dead father of the children. Their testimony, whatever it may be, has as yet been of no special advantage in directing investigation, at least as far as I know; probably on the theory that if the souls of the departed undertook to interfere in the proceedings of our courts, they might produce embarrassing predicaments, being so far as we are instructed in such matters incapable of appearing bodily on the witness-stand to testify to facts within their knowledge; and, besides, it would be exceedingly inconvenient for our judicial officials to serve a summons upon them, as their places of special abode cannot, at present, be determined upon with any exactness outside of a graveyard directory. Cases are, however, upon the record wherein ghosts have pointed out such lines of proceedings as finally led to the proper adjustment of contested property and estates. Perhaps the day may reach us when not only the spirit of the law, and the spirit of the past, but the spirits of the dead, will have large control over the vexed condition of our temporary existence here.

XVI.

GHOSTS.

Will it be impertinent if I say that I am no advocate of the spiritualistic doctrines? Will it be less out of place, if I add that I am no direct opponent of that wonderful creed,—new creed, some people call it; but, in fact, as long established as the first death,—as old as man's first doubt, or his first impulse to worship the unseen, or investigate the first difficulty? I assume no dictatorship of judgment, adhere to no prejudice or formula of education, or habit of social or sectional condition, but place myself in that grand philosophic pause of suspended opinion. There have been good Turks, there are good Turks; there have been good Jews, there are good Jews. One of the latter, leaving his old traditions, rules now the destiny of a great so-called, and properly so-called I believe, Christian Empire; but because in our youth we have been led to think hard of bloody Mahomet, and the Jewish unbelievers of the first Christian era, when mysteries assumed the prerogative of logical religion, and faith was not as quick to conceive as it has been since, we are not justified in believing that the Turk and the Jew are beyond the pale of our sympathies, and, for old deeds done under peculiar pressure, are to be anathematized from our human charities. There are members known, of the spiritualist belief, to be as pure and spotless as any equal number of any other God-believing sect; and while we cannot but look with feelings akin to pity at some of the phases of their peculiar practice, it behooves no man, limited as we all are in our claim to exact knowledge, to condemn the whole because some of their people do certain things, that, in the performance, border upon the absurd.

The mystery of life is more mysterious than the mystery of death. In the first we would, if not governed by the subjection of judgment to certain rules and discipline of faith, be led to believe in a thousand things that appeal to us daily by the miraculous condition of their nature. Science, while it reveals, establishes materiality; and the farther it advances into the realms of air, the more it fills that air with material substances. Dare it go higher yet, and rob the firmament of all its poetry, its vague spirit of religious spirituality, and, sweeping away the dreams of the tenderest imaginations, build up the steps of the Eternal throne with granite boulders,

and form of the Almighty a statue of specific gravity, with needs like our own, and humanly dependent on the vegetation and the atmosphere of these terrestrial regions which astronomy with its supernaturally endowed telescope has established as fact?

It may be an objection, founded upon some basis of common sense, that I have introduced what I call a veritable ghost into my work. I cannot help that. In fact I never would have written my book if I had not had that interview with what now, in all the sincerity that is left to a man in these abominable days, I believe and assert was a ghost; a real ghost,—no dramatic shade made up of an off-duty carpenter with an actor to speak his part,—a ghost arranged for the nonce with a screen between us, of vapory muslin; but a solemn, a meaning, a power to move, but not a power to absolutely affright, ghost. In fact I see no reason to be frightened by them. Grant that they exist,—you never have heard of one that did harm to anybody. They have, it is to be supposed, thrown off the passions of the flesh, with the flesh,—the passion of anger, the passion of mischief, and all the low and base adjunctives that adhere to us in our state of usual visibility. They are not monsters, but symbols, or aerial realities of our former friends. Even the ghost of Robespierre, of Nero, or Jeffrey, would be harmless, bad as they were when encompassed in their fibrous shells of flesh. Ghosts, as a general rule of logic, cannot be as bad as those of earth with whom they have their interviews. And it is not to be supposed that they always have a sublime or important mission to accomplish. If the rule holds good that Providence allows them to flit hitherward, the ghost of a washerwoman has as much right to appear to her successor of the soap-suds, as the ghost of Cæsar to his slayer before the battle that settled the destiny of half a world. And the washerwoman's ghost could not do that, or would not even think of doing that, and yet she might have her homely mission, as important to her friends, as ghosts of a higher rank. But they all have their mission, the ghosts of demi-gods as well as the ghosts of plebeians. They easily establish, what otherwise could not be practically proved, the vexed question of the immortality of the soul. A testimony of a dead man would be as valuable to me, with regard to that matter, as the wire-drawn assertions of a man paid a large salary to keep good, and say that we turn into ghosts after all,—for they all say that.

Now I most respectfully ask what harm does it do to believe in ghosts? Is it weakness? Then St. Paul was weak to idiocy, for he was the apostle of the supernatural, as the Bible will prove, if you choose to consult his record. Was our Saviour weak? It was he,—that supremely blessed, that uncontradictable authority, either in assertion or suggestion—who took upon himself the spectral character, and asked Thomas to test him, by placing his hands upon the image of his wounds. Or, if he was not a ghost, but a substantial form of flesh after his crucifixion, death then makes no difference in our condition, and is but a process without a change. Had his apostles and disciples disbelieved in his appearance after death, and hooted at the story told of his ghost wandering toward them, where would be the Christian church to-day, and where the theory of the resurrection? We disbelieve now, and scoff at what the Saviour did, and his apostles saw, unless he was an impostor, and they liars. Do we in our churches, when we read the biblical narrative of the innumerable appearances, sneer at the book that tells us its contents are the result of divine inspiration, and every word is true? That man or woman would not be a church-member long who dared to do a thing so impious.

If fault be found with me for writing a narrative with such a spectral thread of ghastly tissue running through its woof, what should they say of the king of the ink-plume, Shakespeare himself? He fairly revels in ghosts. In the second part of “King Henry the Sixth,” Bolingbroke, the conjurer, invokes a spirit. In “Julius Cæsar,” Brutus has his celebrated interview with the ghost of Cæsar. In “Macbeth,” the ghost of Banquo comes to the king’s table and nods between the libations, frightening the king out of his royal wits; and in the “witch scene” we have the bubbling caldron, the armed head, a bloody child, a child crowned, with a tree in his hand, and “eight kings,” who pass across the stage, the last with a glass in his hand. What would the play of “Hamlet” be without the father’s spirit wandering on the moonlit battlement, or the interview with the queen-mother, known as the miniature scene? In “Richard the Third,” crowds of ghosts stalk through the tent of the hunchback king, and start him from his sleep; and Richmond, too, holds converse with them. The ghosts of Prince Edward, Henry the Sixth, Clarence, Rivers, Grey, Vaughan, Hastings, the two young Princes, Queen Ann, and Buckingham, stalk before the tyrant’s vision, and curse him as they pass. Otway makes use of ghosts in his “Venice Preserved,” and Sir Walter Scott welded them in the machinery of his novels; and the

ponderous-brained Sam Johnson religiously believed in them. The ghosts of Shakespeare were born of the poetic faculty, and the legendary creed of the world's experience. Place a rose, the sweetest you can find, under a glass case, and you shut out the odor that belongs to it. Is that odor dead and imperceptible because you have raised a barrier between it and your senses? Does it not exist, even more potently, within its crystal prison? Because you do not perceive that sweetness, would you say it is not? Are our direct senses to settle all points of doubt and difficulty? Or, let a man enter, then, who had never seen a rose, and you were to tell him of the great fragrance of the flower of which bards have sung and Scriptures made similes,—would you not scoff him if he said such things were not possible to a plant like that, that looked like painted paper? Then how can you say anything about it who have never seen a ghost? To your senses it may be as yet hidden by a barrier stronger than glass, but yet as transparent to others. But I do not write to argue, but only to suggest. I admit my own weakness and confess to doubts, and cannot place myself with indisputable certainty on any solid basis of logic, and therefore must allow great scope to others; but since I have ventured to tell my story, I had a strong and natural desire to stand, as well as it was possible upon the platform of rational opinion, and felt that I had a right to attempt to place myself there. If any man can prove that I did not see exactly what I say I saw, let him do so, but let him not attempt to “pshaw” me out of the evidences of my senses, and proclaim from his stolid pedestal, called the “impossible,” that I am a dreamer, a madman, and all that sort of adjectiveness which grows from ignorance of the noun substantives of reason. When he can come to me and show me the authority, not derived from his metaphysics or his sectarianism, or his prejudice, by which he is empowered to deny the possibility or the probability and actuality of ghosts, and settle then and forever that such things cannot be, I will admit that I was crazy; bereft of reason; at one moment gifted with eyesight, and the next deprived of it: things which, by the way, would be more at variance with the “order of Heaven,” and more extraordinary, in fact, than the assumed appearance of that thing we call ghost; and which, after all said, and done, and laughed, and sneered at, is that idea of the human hope baptized in our dreams and our theology, by the name of “Immortality.” You cannot prove to a drowning man that he is not surrounded by water. You may tell him that he can swim; but he will tell you that, though he can, he has the cramp. You may tell him that a ship

without volition can float where he is struggling; but he will tell you that the ship has nothing to do with it. He believes in the things that he feels and sees around him, but which you do not experience, and he will not take your arguments and suggestions as the embodiment of an infallible life-preserver. I saw what I saw; prove to me that I did not see it,—for the question is with me and nobody else,—and prove it without the usual insolence, if you can; remembering, in your endeavor to convince, that insult is more of an offence than an argument; indeed, it is only used when argument is exhausted.

The composing of an epic poem is held to be the highest achievement of the human mind. Ideality, or imagination, is the means used in the performance of the work. Ideality is the inspiration of religion, and without it religion would simply be a form of law, to be broken like other laws, and to be vindicated by penalties and processes similar to those imposed and employed in the vindication and substantiation of any other law. The ecclesiastical synonym for ideality is faith.

If ideality be the source of the highest results of intellectual effort, and of religious belief, who can venture to fabricate a chain with which to bind and circumscribe its flights? If man in power, for the supposed benefit of the man out of power, does so, it is merely the result of policy, or passion, or human prejudice, or selfishness; and no man that ever lived, from the Pope of Rome to the backwood preacher, and from the preacher to the ethical moralist, has had that right inherent in his particular nature, to tax as a royalty the patent of the human mind to the grand prerogative of thought.

Canute, the king, tried an experiment of mastery with the tide. What other despot of school theory will make the same effort with the tidings of the brain of man, hoping for better success than the Danish fool? If there be such, so sure as the first known madman of the Hamlet race was driven from the beech, will the other be overwhelmed by the resistless force of that great wave of intelligence which has already grappled with the lightning, and taught it the babel language by which man expresses his endless wants. Man, when he seizes upon the great faculties of electricity, does not stultify himself by establishing a limit to its capacity. At first it was a rod upon a chimney that drew a spark from the thunder-storm; then the galvanic battery, to draw paralysis from limbs; then the wire from city to city; and now it passes beneath the throbbing bosom of the sea, and whispers the

price of stocks or the policy of cabinets into the ear of a man who sits at his table, like a musician at his piano, taking out of the thunderbolts of Jove a language and a spirit that ignorance would deny the possibility of being there. And what more will be accomplished by electricity? We stand upon the threshold of its domain, enlightened by flashes that invite and illumine to farther experiments.

Doubt is the genius of discovery, but, at present, with regard to the supernatural, there is nothing proved except what we believe; otherwise, the world would have but one creed.

XVII.

MANIFESTATIONS.

As may be well imagined, a subject so conspicuous and mysterious as the dark deeds done in Bussey's wood, would not be allowed to pass over without some professional attempts on the part of the spiritualistic community to discover their hidden secret. "Seances" were called, and the force of mediumistic power enlisted and put in operation to extract the terrible revelation from some detective spirit among the dead; with what result the police are best able to judge, and the culprit, too; but it occurred to me that it might possibly amuse my readers to read some of the communications relating to the topics I have been treating of, from the spirit world, through what is called trance mediums. The two or three that I shall take occasion to abridge were sent to the police head-quarters, and I have no doubt they were sent in good faith. The result of the incantations is of little moment, but I have understood that it was said somewhere by a presumed spirit, that they would tell all about the murders, and expose the culprit, if a sum of money would be raised competent to the support of the bereaved mother of the children. The fact that there were large rewards offered—and I believe they have not been withdrawn—should have satisfied them that if, through their agency, the murderer was detected, they could make over the amount to Mrs. Joyce. I do not vouch for the truth of the rumor, but think it improbable, because it was an unnecessary demand under the circumstances. The occasions when, actuated by a mixed motive of curiosity and a desire to examine, I have witnessed the proceedings at these sittings of the faithful, have not had a very strong tendency to convince me that good spirits put their feet under the mahogany. To be sure my experience has been limited, but it has been definite up to this period. I have not attended the public or professional seances; but there are many persons who are sceptics, yet strongly mediumistic, and able to make the table move across the room by the mere imposition of their hands. I have heard the alphabet repeated at my own room, where only one gentleman was present beside myself; and this gentleman, an involuntary and unprofessional medium, was of considerable power, and used that power for the purposes of investigation. Answers I have there witnessed to questions,

that astonished me,—direct, satisfactory, and going back into the far and dim years of childhood, astonishing to my friend, as well as to myself,—facts that my own mind had entirely lost in the lapse of years, but which came up to my recollection as vivid as if of yesterday's happening. Sometimes my recollection has been corrected, and in such a way as to convince me that my idea of the circumstance had been erroneous. And then again, a something of intelligence would move the table, in answer to the alphabet, and tell such self-evident lies, with so enthusiastic a vivacity as to startle me into the belief that he had been the writer of bulletins for some newspaper during the late Southern conflict. And this assumed spirit would pass himself off as a deceased member of my family, staggering me with his knowledge, and from which bewilderment I confess I can find no present means of rational escape. I have, however, come pretty nearly to the conclusion that the spirit, or whatever it is, that I have alluded to above, has been our only visitor; but the imagination cannot conceive a scheme so subtle as his has been to deceive us into the belief that those persons, whose character he pretended to represent, were in fact the very individuals themselves; and under ordinary circumstances few men could have been blamed had they been credulous of his representations.

I have frequently tried by the most determined exercise of will, to force the responses into the channel I had mentally prepared for them; but in no case, I must candidly confess, could I command obedience. This fact shook my theory of sympathetic influence, and settled in that small sphere of experiment the vexed question of the power of mind to operate upon matter. My friend, who has the mediumistic faculty, made similar attempts, and always with like result. Let wiser heads than mine unravel and explain, by cogent and irresistible logic, these eccentric incidents, for I must admit my utter inability to explain them by any rules outside of those adopted by the spiritualist. But though I may have been a witness of these phenomena, it does not follow that I am a spiritualist, any more than I am of the mythological faith of pagan Greece, because, forsooth, I take delight in the statue of Minerva, go into raptures over that of Venus, and read with unfeigned enjoyment the poems of that prince of old idolaters, blind but immortal Homer.

I have before me a package of manuscript purporting to have been written by inhabitants of another world,—by hands that have felt the

pressure of the hand of death, and yet, it would seem, are able to express thought with the intelligence usually attributed to life. One of these communications purports to have been written by Isabella Joyce, the murdered girl, and another by her father, Stephen Joyce.

The manuscript of the girl strikes me as of a better order of chirography than is usually to be found in that of children of her age; while the father's is large and roughly emphatic, and bears the impress of a passionate desire to discover the murderer and avenge the deaths of his children. Friends of Stephen Joyce assert that the formation of the writing is unmistakably similar to his; but, as I have not been able to compare the dead man's penmanship with anything done by him while on earth, I cannot pass judgment either of denial or verification.

It would appear that, speedily after the murders were discovered, meetings were called of the spiritualists, in the hope that some revelation would be made that might lead to the arrest of the party or parties engaged in the atrocious deed.

Not later than a month or two ago, I read in a spiritualistic paper, of the city of Boston,—conducted, by the way, with great editorial ability,—a communication from the boy murdered; but which contained no clue that could direct detection safely and judicially to any desired result.

In the written communication, signed "Isabella Joyce," to which I have alluded, there are references to parties that had been previously arrested or suspected. She, however, distinctly exonerates the young man of the factory, whose flight is as yet unaccounted for; but whose innocence is beyond all question. She speaks, also, of that inebriated unfortunate to whom Dedham jail has become a matter of practical and suggestive recollection. The name of that eminent individual known to the police and the public by the euphonic appellation of Scratch Gravel, makes no figure in her revelations; though he confessed to many circumstances that would have led in ordinary cases to his implication in the deed. His admissions were tortured by over-zealous detectives into positive confession; but after strict comparison of his statements, made under the pressure of prison and terror, or rum reaction, with the exact incidents of his maudlin staggerings and stutterings, he was given up as not worthy of belief, though he madly made the attempt to get himself hanged.

It is my intention to give merely the pith and essence of these strange writings,—having placed the original papers in the hands of my publisher,—where any person, curious in such matters, can examine them.

The girl commences by appealing to her mother, and declaring that she cannot be happy until they have found that “terrible man.” She cries frequently to her mother, as if under some great spasm of alarm,—hints at certain persons,—exonerates others, who were suspected, and in such manner as to remind us of the terrible ravings and charges of the “afflicted children” who figured as the juvenile fiends and denouncers of the Salem Witchcraft tragedies.

In her outcries she speaks of a returned soldier, and checks her mother’s suspicions, that appeared to have gone astray in the wrong direction, and then directly charges the crime upon our poor dilapidated young friend, whose greatest misfortune it was to have been drunk on that fatal day, and been whipped or blackeyed in the evening.

The girl proceeds with repeated exclamations of Mother! Mother! and emphasizes the sufferings through which she passed. Be it remembered that she speaks only of murder throughout her disclosures, if disclosures they can be called.

Her second declaration is more minute and connected, but still it is a jumbled and very unsatisfactory narrative, or rather child gossip, of the circumstances and incidents as they occurred previous and up to the instant of the catastrophe. She again speaks of a soldier,—*the one whose hand was cut*; says she saw him in a garden as they passed along,—the garden across the brook; that he followed them into the woods. She now goes back to her trip out of Boston toward the wood, and tells that they got out at Burroughs Street, walked up the plain or plank (hard to decipher), till they came to a juncture of the road where it crosses the track of the steam cars, then to the right, and round a store or stone house to the left, over the brook to the other side. She expressly and suddenly declares, at this point of her recital, that *she does not remember him*. After they climbed over the gate (supposed to be the gate very near where she was found, and which opens from the Dedham road; there is another gate between the murder spot and Mr. Motley’s house), they saw the man. He followed, but up to that moment had not spoken to her. He now seems to have turned back, but, changing his

mind, returned quickly and addressed her. At this she became alarmed and fled; he pursued. There is much confusion here,—a scuffling and tussling of sentences as if a mimic was giving to the life some quickly whirling scene of trouble and irritation and surprise, wherein there was the essence of a great danger.

It is a confused statement of Johnny's having spoken of the sheep (Mr. Motley's sheep down in the valley grazing at the time, watched by a vagrant boy, afterward examined by the authorities, and found to be no wiser than the flock he watched). She says she does not remember exactly—speaks of a knife which she tried to get hold of—of his cutting himself with it—of his throwing it into the wood. (If he did, he must have gone back for it and rescued it, for no such knife was found after a vigilant search over the whole locality.) She exclaims, "He murdered me!"—that he was scratched on the face and neck, and bears the marks "now,"—at the time of her manifestation at the spiritual sitting. At this point the paper is filled with wild and alarming cries to her mother. The idea presents itself again of a mimic reacting a scene in which the soul is driven to the very verge of madness by that dread fiend called Terror. The voice seems to pierce the air in its shrill proclamation of intense and terrible agony, and anon it subsides into stifled sobs and ejaculations of how much she suffered while the black deed was done,—how "sick" she was. After that outburst of mad appeal and piteous mourning she resumes her narrative, and describes her murderer. He wore blue clothes, and looked like a soldier; but not a soldier just from the wars. (A soldier loafing after his laurels had withered in bar-room atmosphere, I suppose.) She fixes his nationality distinctly,—an Irishman. It was one o'clock, she says; but the writing here is blurred and crossed, and very difficult, if not quite impossible, to make out and determine whether it is one or two o'clock. Her brother, she says, ran for help, and the man ran after him and killed him and came back to her. This statement is signed "Isabella Joyce."

The other portions of the page of foolscap, on which her hand appears, is covered with a lively display of all sorts of penmanship,—the idle signatures of a small party of the other world's inhabitants, who, it would seem, were in Isabella's company.

Again she resumes control over the writing medium's hand, and says,—

“Johnny was dead, and the man went off after I died. He went down the other way to Boston. He will be found.”

We have nothing more from the spirit of the girl (I speak now without entering into any question of the authenticity of these communications, leaving my reader to dispose of that enigma, as may best suit his temper and convenience), but the father makes his appearance on the scene and endorses his daughter’s testimony; but singularly neither witness offers to give the name of the designated soldier. The spiritualistic theory is that they could not do so, because he was a stranger to both of them, and consequently while they could see his face and clothes, they could not tell his name. The case is similar to our own daily experience in our transient meeting with people on the street,—a passing and silent interview, in which nothing is discovered save the recognition of a person and no more.

The revelation of the father is to the effect that he knows where the man is, and will follow him to the end.

One part of his statement I suppress, because it comes directly within the province of the law officers, and might direct suspicion upon a possibly innocent man.

Three years ago, it is asserted by those who believe in this extraordinary doctrine of the power of the dead to express themselves through the living, this man, Stephen Joyce, declared that by the fifth of the month of July, eighteen hundred and sixty-five, the murderer would be in the hands of justice; and how many months have come and gone since that spirit entered the mystic witness-box, and foretold such sequence to the tragedy, and yet without fulfilment? I am sorry that he was no true prophet,—no wiser in a ghostly form than in the fleshly substance. He is not half so good a ghost as Hamlet’s father was. The Dane went straight to the point, and told the truth and nothing but the truth, while here we have the spirit of the girl upon the stand, and she rambles in her talk without the aid of the great legal screw of cross-questioning, designating nothing that is tangible, indeed giving false clues to the murderer, and screaming, “Mother! Mother!” as if she would pour into the listener’s ear some faint echo of those dread cries that rang amid the gloomy woods when the soul of her was stabbed out of her.

The ghost of the murdered King of Denmark spoke the truth, as other ghosts by judicial testimony have done; but they were the old-fashioned

ghosts, standing by themselves without the aid of human machinery, without the table or the easily assimilated trance, responsible for their coming and for what they told or what they desired to be done by their informing. They came and made short work of it, impressing belief by solemn utterances or majestic gestures. In this case again, the man, who should have been interested more than any other man, comes through the arm and fingers of a stranger, a living being, and is assumed to have written out, at that solemn investigation, a deposition,—not made upon the Holy Book, holier than all books, but with lips sanctified by the kiss of death,—and vaguely points to some unfortunate, and declares with all the potency of his supernal condition that ere the fifth of the approaching month the discovery would be made, and the hands of the law laid upon the person of the murderer of his children; and the fifth of that long-passed month lies strewn with the leaves of several autumns, buried far back in the dead annals, and no revelation has confirmed his prophecy. How is this? Or was it, as I have said before, left to these pages to revive that miserable event, and glare it to those eyes that have so often seen the vision of the dead; to awaken in that drowsing conscience the phantoms that he had half lulled to sleep, and force him to some act by which the law may be able to read, without the farther aid of business mediums, the mark of Cain that God has put upon his brow?

Who knows, and who can tell as yet, the meaning of my ghost that came to me upon the hill?

It was not with any sinister design that the doctrine of spiritualism, or its practices, has been introduced into my narrative. It formed no portion of my original intention; but I found it impossible to refrain from giving publicity to documents that had been found of sufficient importance to attract the attention of the authorities. The spiritualist is able to take care of himself and his belief. Such communications might be used to a fearful and fatal purpose. The criminals engaged in the perpetration of a crime could, if such testimony was of any judicial weight, arrange a circle, produce the manifestations, or the similitude of manifestations, and direct attention to certain innocent parties, when suspicion would give time for the real culprits to escape. Every one knows how easy it is to work through the agency of a religious sentiment, and a very large class of people, habituated to the belief in spiritual revelations as inculcated by the spiritualists,

receiving impressions in that way, would be hard to believe otherwise than as the spurious spirits asserted. Crime would thus become more dramatic, and the consequences of such interference on the part of a religious organization might lead to the overthrow of all the purposes and powers of civil authority. Happily, I am confident no such construction can be placed upon the operations and revelations of the authorized spiritualistic media. I do not know exactly what view they take of the knowledge presumed to be possessed by the murdered regarding the murderer. To reveal simply the name of the person, taking for granted that the power exists according to the doctrine of spiritualism, would be of no use, unless a train of circumstantial evidence could be intimated, by which the law could develop a legal connection between the accused and the crime. There have been several instances, in this country, in which testimonious ghosts have enacted important parts. Some of these are upon the public record; others in private circulation. There was a case some fifty years ago in Virginia, when, if I recollect correctly, the ghost of a Mr. Clapham met a man upon the path in the mountain, nearly opposite to the famous Point of Rocks, on the Potomac, and told him where his will could be found,—the absence of which had involved his widow in vexatious and tedious litigation. The will was found and the question of right established in her favor; and I myself have partaken of the hospitality of that generous lady in the years gone by, when peace and plenty abounded in those beautiful valleys. As a matter of curiosity, I will give in brief, a singular case that happened in Scotland, and which goes to establish my theory of the injustice that may be perpetrated by the assertions of persons using the simulated spiritualistic agency for the detection of crime. The Scotch rebellion of 1745 compelled a larger amount of vigilance in preventing its recurrence than it possibly had taken to subdue it in the first instance. Troops were scattered among the highlands, for the purpose of arresting all persons using arms, and enforcing the orders of the British authorities against the wearing of the clan tartans. Among these troops was Sergeant Arthur Davies, who is described as a bold and reckless man, careless in exposing himself openly in those wild and hostile glens, and among a people conquered but not won. Davies was in command of a squad of four men, and was stationed at Dubrach, near Braeman, then a desolate and dangerous district.

On the 28th of September, 1749, Davies left his barracks, with his command, to meet the troops posted at Glenshee. The sergeant never

returned from that expedition; for, wandering off alone to hunt in his usual careless and defiant mood, he was murdered.

Two men Duncan Terig, alias Clerk, and Alexander Bain MacDonald were suspected, but, for five years, owing to the disaffected temper of the people toward the foreign troops, no steps were taken to arrest these suspected men; but at length on the 3d of June, 1754, nearly five years afterwards, Clerk and MacDonald were tried at Edinboro' for the murder of the sergeant. This singular evidence was adduced upon the trial.

Some time after the murder, Donald Farquharson, living in Glenshee, had been informed by his neighbor Alexander MacPherson, that he (MacPherson) had been visited frequently by an apparition. It was the ghost of Sergeant Davies, who insisted upon having a burial of his remains. This MacPherson had declined to have anything to do with. On this the spectre had bidden him apply to Donald Farquharson. Together they visited the spot where MacPherson said the remains were lying; Donald giving as a reason for going his fear of being troubled by the grave-seeking ghost of the slaughtered Saxon.

The witness described the finding of what was left of the skeleton of the unhappy warrior. They were satisfactorily recognized by certain incontestable signs.

MacPherson's description of the ghost as it appeared to him was this: A figure clad in blue. He appeared at night; he was in bed; he rose and followed it to the door. "I am Sergeant Davies," said the spectre; and then he related the facts of the murder, and pointed out the place where his body or his relics could be found. The witness had asked the names of the murderers. The ghost declined, upon the ground that he could not reply to a question, but would have told if he had not been asked. The ghost had visited him again, but this time totally denuded of clothing,—but always desiring to have his body buried. The body was subsequently properly interred. Again the ghost had come to him and had announced his murderers,—“Duncan Clerk and Alexander MacDonald,”—the prisoners then at the bar. The witness was asked by Mr. Macintosh, counsel for the prisoners, what language the ghost spoke. “As good Gaelic as ever he heard in Lochaber,” said MacPherson. “Pretty well,” commented McIntosh, “for the ghost of an English sergeant.” The facts turned out to be that

MacPherson had been in the employment of Clerk, and a disagreement had arisen between the two men. MacPherson had often charged Clerk with the murder, and on this Clerk had promised to do everything for him if he would only keep his suspicions secret. But stronger evidence was produced against the prisoners. A man named Cameron had seen the murder perpetrated. He saw Clerk and another man fire simultaneously at the soldier, and he saw him fall; but he was deterred from making these facts known to the authorities for fear of incurring the animosity of the Highlanders, who thought it no great harm, but perhaps a merit, to shoot down one of the hated invaders.

Curious to relate, the prisoners were acquitted. The evidence against MacDonald was not clear; but no doubt existed as to the guilt of Clerk. MacPherson was prompted to the accusation against Clerk by motives of personal malice, and, having become possessed of Clerk's secret, he was anxious to gratify his hatred. Fear of the popular hatred, if he lodged a simple accusation against his victim, on account of the abhorrence in which an informer was particularly held at that time, and the more so if the information was directed against a native in favor of the dominant race, he was obliged to invent his ghost-story, and, thus appealing to popular belief in the supernatural, effect his purpose. But the jury would not believe his story, for it was known that he had discovered the sergeant's remains before he told of the ghostly visitations, which proved that the marvel was an afterthought.

Sir Walter Scott edited an account of the murder for the Bannatyne Club, and Mr. Hill Burton has included the story in his narratives of Criminal Trials in Scotland. Sir Walter, relating another trial where a ghost attempted by a second party to affix his murder upon a certain person, gives the following remark of the presiding judge upon the responsibility of the ghost testimony: "Stop!" the Judge interrupted, gravely; "this will not do. The evidence of the ghost is very much to the purpose, no doubt, but we can't receive it second-hand. None can speak with a clearer knowledge of what befell him during life. But he must of course be sworn in the usual way. Call the ghost in open court, therefore, and, if he appears, the jury and I will give all weight to his evidence; but in case he does not come forward, I cannot allow of his being heard, as now proposed through the medium of a

third party.” Up to this date it is not known whether the bailiff has made a return of the summons or not. We presume not.

But was it a ghost that confronted me?

That question, now that time is progressively dimming the vividness of the impression that I received when first I saw that something on the brow of the hill, rises to the tribunal of my own investigation. I am as anxious to have the mystery solved as my reader possibly could be; indeed I am more anxious than any other person could be. Dim as it sometimes appears to my mind’s eye at times, there are occasions when it assumes all the exactness of an incident that transpired but a second since. I see it cross the wall, advance out of the shadow into the light, stand still, then whirl or wheel, make one human-looking step, and vanish. Will I ever see it again? That is another question that disturbs me some. I cannot do but wait; but with what feelings, wait? You, in your fair room with gas a-lit, or reading in the broad-falling down of sunlight on this page, cannot conceive. Put out your light and let the room grow dark, and pause and think, and then perhaps, despite the adamantive philosophy of your unbelief, you may recognize the sentiments I have; or on some still and luminous night, moonless, drive out to that old wood and by yourself, even now, with such great washings of rains and cleansing of snows and storms of wind, go to the rock where the girl was found and see how your nerves will quiver, or how your heart will throb; or, passing down the road, draw rein at the cottage where I stopped, and, saying naught to any one, place yourself where I stood and wait.

I myself would not willingly try that visit over again, not that I dread anything of harm from such an act, but because I have been there once before and have had enough. But if I never see that strange visitor again, I will see the murderer. Of that I am convinced. I have firm reliance in law when it is honestly employed to detect crime or protect the wronged. I have faith in that subtle sympathy, which connects us with the dead. I feel that without it, love would be but a thread broken by the last breathing of our lungs, and memory nothing but an intellectual frigidity, to be melted into mist as we approach the haven of the hereafter. The dead appeal to us by the mesmeric agency of their immortality; they throw out, through every movement of the world’s circumstances and events, a suggestion of their needs, their condition, and their destiny. They are like the history of the past sublimated by the eloquence of immutable truth, and are sanctified by a

sleep that has eternal life within its closed lids. They have, too, a sympathy in retort with us. As naught of the material can suffer annihilation, so the soul, being indestructible, permeates the air we breathe as do those revived plants of perfume that last fall we might have fancied dead and beyond all chance of life again. If that vision was a ghost, its purpose will be revealed; for it is impossible to suppose that the Ruler of the Universe, who says a sparrow shall not fall without his knowledge, would permit so strange an occurrence to happen without having an intention. What that intention was, I for one, if only one, shall wait patiently to see.

THE END.

Transcriber's Notes

- pg vii Changed VIII. The Murder Rock to: Murder-Rock
- pg 10 Added word that after: instant search,—a search
- pg 16 Removed comma after: changes and attacks. Man, exposed
- pg 62 Changed My route at night to the Murder Rock to: Murder-Rock
- pg 111 Changed She looks like a child begining to: beginning
- pg 130 Changed trouble and irritation and susprise to: surprise
- pg 141 Changed despite the adamantive philosphy to: philosophy

*** END OF THE PROJECT GUTENBERG EBOOK WAS IT A GHOST?
THE MURDERS IN BUSSEY'S WOOD ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.